

COMPLETE LEARNING SESSION

Federal System - Complete Learning Session

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Federal System - Complete Learning Session

Evidence key: [FACT] constitutional, judicial or official fact · [ANALYSIS] reasoned synthesis · [CURRENT] dated status · [LIMIT] qualification.

Sources and date

- Constitution of India; Constituent Assembly Debates; Government of India Acts, 1919 and 1935; States Reorganisation Act, 1956; Sarkaria and Punchhi Commission material.
- OCR-searchable local editions of *Indian Polity* and *Courseware on Indian Polity* by M. Laxmikanth, Federal System chapters.
- Official Supreme Court judgments: *State of West Bengal* (1963), *Kesavananda Bharati* (1973), *State of Rajasthan* (1977), *S.R. Bommai* (1994), *Kuldip Nayar* (2006), NCT Delhi (2018 and 2023), *Mohit Minerals* (2022), Punjab Governor (2023), Article 370 (2023) and West Bengal (2024).
- Official GST Council, Inter-State Council Secretariat, Finance Commission and J&K/Ladakh government material checked through **7 September 2026, Asia/Kolkata**.
- [LIMIT] Topic 12 owns the nature, structure and working theory of federalism. Topic 13 owns full Centre-State and Inter-State machinery; this package teaches the architectural rules and cross-links needed here without duplicating that chapter.
- Practice: **32 MCQs**, ABCD x8, **128 unique option explanations**, **32 unique traps**, **10 audited direct/shared PYQs**, and **6 original solved Mains questions**.

Learning roadmap

Stage	Sessions	Outcome
Foundation	1-2	Define federalism as structure plus process and trace its Indian evolution
Core	3-10	Master features, Union tilt, legislative, executive, fiscal and judicial balances
Synthesis	11-14	Apply GST, asymmetry, territorial/functional and current adjudicatory perspectives
Advanced synthesis	15	Diagnose challenges, reforms and the qualified Indian classification
Optional Advanced	separate block	Use scholars, comparisons, commissions and dialogic theory without burdening a core answer

BASIC LEARNING SESSION

SESSION 1 - FEDERALISM AS DIVIDED POWER AND CONTINUING PROCESS

Stage: Foundation

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Federalism protects decision-making at more than one territorial level instead of leaving regional authority to ordinary central delegation.

Technical definition: A federation combines constitutionally allocated self-rule with shared rule, adjudication and intergovernmental processes through which overlapping responsibilities are negotiated.

VISUAL FIRST

CONSTITUTIONAL ALLOCATION

```
|  
+--> SELF-RULE: Union and States govern assigned fields  
|  
+--> SHARED RULE: Parliament, councils, transfers and consultation  
|  
+--> UMPIRE: constitutional courts settle competence disputes  
|  
+--> PROCESS: bargaining, cooperation, competition and lawful conflict
```

The label matters less than whether both autonomy and a workable relationship are constitutionally protected.

Core teaching

- [FACT] A federal system is not created merely by provincial offices or administrative delegation. The decisive fact is that the Constitution itself distributes authority between governments that act directly on citizens.
- [FACT] India has one sovereign constitutional order, not a confederation of sovereign States. State autonomy is constitutional but does not include a unilateral right to secede.
- [ANALYSIS] Federalism therefore has a **structural side**-institutions, Lists, courts and amendment safeguards-and a **process side**-consultation, bargaining, finance, implementation and dispute settlement.
- [LIMIT] Harmony is not the test. A federation may experience conflict; the constitutional question is whether conflict is channelled through law, politics and institutions without destroying assigned autonomy.
- [ANALYSIS] Labels such as *quasi-federal*, *cooperative*, *competitive*, *bargaining*, *coercive* and *asymmetric* describe different dimensions. None is a complete legal classification by itself.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Indian federalism is constitutionally divided government sustained by intergovernmental process: autonomy is protected, overlap is negotiated and conflict is constitutionally bounded.

MUST-WRITE KEYWORDS

constitutional allocation; self-rule; shared rule; dual polity; intergovernmental process; judicial review

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Federalism is protected divided authority, not revocable devolution. **Named evidence:** Articles 1 and 245-246, the Seventh Schedule and Article 131. **Analysis:** These provisions create governments with direct constitutional competence and a forum for disputes. **Qualification:** One constitutional order and a strong Union do not convert States into departments.

NAMED EVIDENCE

Articles 1, 245-246 and 131; Seventh Schedule; *S.R. Bommai v. Union of India* (1994).

PRELIMS TRAP

Do not define federalism only through equal State representation, a dual court system or the weakness of the national government; none is indispensable to every federation.

MAINS USE

Use this as the opening framework for any question asking whether India is federal, quasi-federal or cooperative.

MINI RECAP

Federalism = protected self-rule + shared rule + constitutional adjudication + continuing negotiation.

SESSION 2 - ORIGIN AND EVOLUTION OF THE INDIAN FEDERAL DESIGN

Stage: Foundation

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: India's federal design grew from colonial devolution, constitution-making, territorial integration and later institutions of shared rule.

Technical definition: The 1950 settlement adapted the 1935 legislative architecture to republican democracy, constitutional supremacy and a deliberately strong Union capable of holding together a diverse post-Partition polity.

VISUAL FIRST

Stage	Federal significance	Exact caution
1919	Provincial dyarchy divided transferred and reserved subjects	Not a federation and not full provincial autonomy
1935	Proposed All-India Federation; provincial autonomy; three Lists; Federal Court	The federal centre never came into operation
1946-49	Constituent Assembly designed a strong Union with constitutionally protected States	States did not create the Union by treaty
26 January 1950	Constitution commenced with dual polity and one supreme Constitution	Federalism operated within a Union of States
1953-56	Andhra formation, States Reorganisation Act and Seventh Amendment	Linguistic reorganisation adjusted the map without creating secession rights
1976	Forty-second Amendment moved selected subjects, including education and forests, to the Concurrent List	Amendment altered the balance but did not abolish State competence
1990	Inter-State Council established under Article 263	Consultative, not a federal executive
1992-93	Seventy-third and Seventy-fourth Amendments constitutionalised local government	Local bodies are not co-sovereign constituent units
1994	<i>S.R. Bommai</i> strengthened review of Article 356 and federalism	Federalism was protected without making States sovereign
2016-17	One Hundred and First Amendment and GST implementation	Shared taxation rests on constitutional and political bargaining
2022-24	<i>Mohit Minerals</i> , Article 370, Punjab Governor and West Bengal rulings	Holdings must be stated separately and narrowly

Core teaching

- [FACT] The Government of India Act, 1919 introduced dyarchy in provinces. It was an antecedent of responsible provincial administration, not a federal constitution.
- [FACT] The 1935 Act proposed an All-India Federation of provinces and princely States, created provincial autonomy and supplied a three-List scheme and Federal Court. The proposed federation never operated because the accession condition was not fulfilled.
- [ANALYSIS] Partition, integration of princely States, security concerns and socio-cultural diversity pushed the Constituent Assembly toward a federation with substantial Union capacity.
- [FACT] Linguistic reorganisation in the 1950s demonstrated adaptive federalism: territorial boundaries could change while the Union and constitutional order continued.
- [ANALYSIS] Later milestones shifted the operating balance from emergency-centred control toward judicial review, fiscal bargaining and consultation, although centralising powers remained.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Indian federalism was not copied in one step; it emerged from colonial antecedents, a post-Partition holding-together choice and repeated constitutional adaptation.

MUST-WRITE KEYWORDS

1919 dyarchy; 1935 federation; Constituent Assembly; 26 January 1950; linguistic reorganisation; institutional adaptation

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: India's federation is historically constructed rather than treaty-created. **Named evidence:** the unimplemented 1935 federation, Constituent Assembly design and 1956 linguistic reorganisation. **Analysis:** The sequence shows continuity of administrative devices but transformation of legitimacy through democracy and constitutional supremacy. **Qualification:** Colonial antecedents explain structure; they do not determine the present constitutional character.

NAMED EVIDENCE

Government of India Acts, 1919 and 1935; Constituent Assembly Debates; States Reorganisation Act, 1956; Seventh Amendment; *S.R. Bommai* (1994); One Hundred and First Amendment (2016).

PRELIMS TRAP

Do not say the 1935 federation came into operation, or that linguistic reorganisation created sovereign linguistic States.

MAINS USE

Use the timeline to answer origin, holding-together design, adaptability and evolution questions.

MINI RECAP

1919 devolution -> 1935 unimplemented federation -> 1950 constitutional federation -> reorganisation -> judicial and fiscal cooperation.

SESSION 3 - CLASSICAL FEDERAL FEATURES AND THEIR INDIAN ADAPTATION

Stage: Core

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Federal features are the safeguards that make divided authority durable rather than politically revocable.

Technical definition: India adapts dual polity, a written and supreme Constitution, divided legislative fields, selective rigidity, independent judicial review and bicameral State representation without copying every classical federation.

VISUAL FIRST

Classical feature	Indian form	Qualification
Dual polity	Union and State governments derive authority from the Constitution	States are autonomous in assigned fields, not sovereign
Written Constitution	Powers and limits are textually allocated	Written form alone does not prove federalism
Constitutional supremacy	Both levels are constitutionally limited	Parliament is not legally sovereign
Division of powers	Articles 245-246 and Seventh Schedule	Union predominance operates through express clauses
Rigidity	Article 368 State ratification for specified federal matters	Only at least half the States, and only for listed subjects
Independent judiciary	Judicial review and Article 131 disputes	India has an integrated, not dual, judiciary
Bicameralism	Rajya Sabha represents States in Parliament	Seats are not equal among States

Core teaching

- [FACT] The Union and States each possess a constitutional field of action. Neither level receives all authority from an ordinary statute enacted by the other.
- [FACT] Article 368 requires ratification by at least half of the State legislatures for amendments affecting specified federal provisions, including the Seventh Schedule and State representation in Parliament.
- [FACT] The Supreme Court and High Courts form an integrated judicial system, yet judicial integration can strengthen federalism by applying one supreme Constitution to both levels.
- [FACT] Rajya Sabha provides a State voice in national lawmaking and has special roles under Articles 249 and 312.
- [LIMIT] Rajya Sabha does **not** equally represent all States. Allocation under the Fourth Schedule broadly varies with population; describing it as equivalent to the United States Senate is incorrect.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

India satisfies the federal test through protected competence and constitutional adjudication, even though its upper chamber and judiciary differ from classical American arrangements.

MUST-WRITE KEYWORDS

dual polity; written and supreme Constitution; Seventh Schedule; selective rigidity; Article 131; Rajya Sabha

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: India possesses the core institutions of a federation. **Named evidence:** Seventh Schedule allocation, Article 368 ratification, Article 131 and Rajya Sabha. **Analysis:** Together they entrench, represent and adjudicate divided power. **Qualification:** unequal Council of States seats and an integrated judiciary are Indian adaptations, not proof of a unitary State.

NAMED EVIDENCE

Articles 79-80, 131, 245-246 and 368; Seventh Schedule and Fourth Schedule.

PRELIMS TRAP

Bicameralism is federal here because Rajya Sabha represents States, but it is not based on equal State representation.

MAINS USE

Use this seven-feature matrix for direct Prelims elimination and the federal side of an evaluative Mains answer.

MINI RECAP

Protected fields + supreme text + amendment safeguard + judicial umpire + State voice establish the federal core.

SESSION 4 - UNITARY AND CENTRALISING FEATURES: THE STRONG-UNION TILT

Stage: Core

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Centralising features give the Union greater coordinating, territorial, emergency and institutional capacity.

Technical definition: These features operate inside the Constitution and must be weighed against State competence; they justify a Union-weighted federal classification, not a purely unitary one.

VISUAL FIRST

Power cluster	Centralising feature	Federal limit
Legislative	Wider Union field; residuary power; Articles 249, 250, 252 and 253	Each route has a distinct trigger and scope
Territorial	Article 3 alters State area, boundary or name	Presidential recommendation and State views are required
Constitutional	One Constitution and single citizenship	Diversity is accommodated through asymmetrical provisions
Judicial/administrative	Integrated judiciary, CAG, ECI and All-India Services	Common machinery remains constitutionally bounded
Political	Governor appointed by President	Governor is the constitutional head of the State, not a Union agent
Crisis	Articles 352, 355-356 and 360 centralise operation	Parliamentary control and judicial review remain
Representation	Rajya Sabha seats are unequal	State representation still exists and Articles 249/312 empower the chamber

Core teaching

- [FACT] Article 248 and Union List Entry 97 give Parliament residuary legislative power, a marked difference from federations that leave the residue with constituent units.
- [FACT] India ordinarily has one Constitution and one citizenship; the former special constitutional arrangement of Jammu and Kashmir cannot be taught as a current separate State constitution.
- [FACT] Article 3 permits Parliament to reorganise States without binding consent of the affected legislature.
- [FACT] Article 312 permits Parliament to create a new All-India Service after Rajya Sabha passes the prescribed national-interest resolution by two-thirds of members present and voting.
- [FACT] Emergency provisions can temporarily intensify Union power. Article 360 supplies a Financial Emergency mechanism, but no Financial Emergency has ever been proclaimed.
- [ANALYSIS] Union predominance is strongest where national coordination, security, macroeconomic stability or cross-border externalities are involved. Legitimacy depends on necessity, consultation and review.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

India's Constitution creates a federation with a powerful Union; central capacity is a design feature, not a licence to erase State government.

MUST-WRITE KEYWORDS

Union bias; Article 3; residuary power; single citizenship; integrated institutions; All-India Services; emergency

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: The Constitution deliberately weights capacity toward the Union. **Named evidence:** Articles 3, 248, 312, 352-356 and 360. **Analysis:** These provisions permit coordination, territorial adaptation and crisis response.

Qualification: Their constitutional source, conditions and review prevent them from becoming a general power of central command.

NAMED EVIDENCE

Articles 3, 248, 312, 352, 355-356 and 360; Union List Entry 97.

PRELIMS TRAP

Do not call every integrated institution anti-federal; integration may support uniform constitutional standards while powers remain divided.

MAINS USE

Use for 'unitary features', 'quasi-federal' and strong-Centre evaluation questions.

MINI RECAP

Strong Union != unitary State; ask whether central power is enumerated, conditioned, reviewable and balanced by State competence.

SESSION 5 - LEGISLATIVE FEDERALISM: ARTICLES 245-254

Stage: Core

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Legislative federalism allocates lawmaking subjects and supplies rules for overlap and conflict.

Technical definition: Articles 245-246, 246A, 248 and 254, read with the Seventh Schedule and interpretive doctrines, distinguish competence, concurrent authority and repugnancy.

VISUAL FIRST

ARTICLE 245: territorial reach

|

v

ARTICLE 246 + SEVENTH SCHEDULE

Union List -> Parliament

State List -> States, subject to constitutional exceptions

Concurrent List -> both levels

|

---> ARTICLE 246A: special GST competence

---> ARTICLE 248 + ENTRY 97: residue to Parliament

|

v

OVERLAP: pith and substance -> harmonious construction -> Article 254 if Concurrent conflict

Core teaching

- [FACT] Article 245 concerns the territorial extent of parliamentary and State laws. Parliamentary law is not invalid merely because it has extra-territorial operation.
- [FACT] Article 246 establishes a hierarchy: Union List power operates notwithstanding the Concurrent and State clauses; State List power is expressly subject to Union and Concurrent clauses.
- [FACT] Article 246A creates special GST competence shared by Parliament and State legislatures, with Parliament holding exclusive competence over inter-State supply under its terms.
- [FACT] Article 248 and Entry 97 place residuary legislative power, including residuary taxation subject to the GST settlement, with Parliament.
- [FACT] **Pith and substance** identifies a law's true character; incidental encroachment does not invalidate a law otherwise within competence. **Harmonious construction** seeks coexistence between entries. **Colourable legislation** tests disguised transgression. **Territorial nexus** tests the real connection supporting a State law's reach.

- [FACT] Article 254 principally addresses repugnancy between parliamentary and State laws on a Concurrent subject. A reserved State law receiving Presidential assent may operate in that State, but Parliament may later override it.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The Seventh Schedule is not three sealed boxes; doctrines preserve workable autonomy while Article 254 supplies a final rule for irreconcilable Concurrent conflict.

MUST-WRITE KEYWORDS

Articles 245-246; Article 246A; Article 248; Seventh Schedule; pith and substance; Article 254

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Legislative federalism combines allocation with conflict-management rules. **Named evidence:** Articles 246 and 254 plus pith and substance. **Analysis:** Courts first identify true character and attempt reconciliation before applying a priority rule. **Qualification:** Article 254 is not a universal answer to every Union-State disagreement.

NAMED EVIDENCE

Articles 245, 246, 246A, 248 and 254; Seventh Schedule; Union List Entry 97.

PRELIMS TRAP

Presidential assent under Article 254(2) permits operation of the State law in that State; it does not prevent Parliament from later overriding it.

MAINS USE

Use the sequence characterise -> reconcile -> resolve in legislative-competence questions.

MINI RECAP

Allocation comes first; judicial doctrines manage overlap; Article 254 resolves a narrower Concurrent-field collision.

SESSION 6 - PARLIAMENT'S CONSTITUTIONAL ROUTES INTO THE STATE FIELD

Stage: Core

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The State List is constitutionally protected but not absolutely exclusive.

Technical definition: Articles 249, 250, 252 and 253 create different federal gateways for national interest, emergency, State request and treaty implementation; Articles 356-357 add an exceptional breakdown route.

VISUAL FIRST

Route	Trigger	Duration or consequence	Safeguard / trap
Article 249	Rajya Sabha: two-thirds present and voting; national interest	Resolution lasts up to one year and may be renewed; law continues six months after resolution ends	State power is not generally abolished
Article 250	National Emergency under Article 352 is operating	Law continues six months after Emergency ends	Not available during every emergency
Article 252	Two or more State legislatures request Parliament	Applies to requesting and later-adopting States	Only Parliament may amend or repeal that law
Article 253	Treaty, agreement, convention or international decision	Parliament may reach a State subject	Still subject to the Constitution
Articles 356-357	Constitutional government in a State cannot be carried on	Parliament exercises the State legislature's power during the proclamation	<i>Bommai</i> review and temporal controls apply

Core teaching

- [ANALYSIS] These routes reveal the central design principle: State autonomy is the normal rule, while national legislation in the State field requires a constitutionally identified reason.
- [FACT] Article 249 uses the Council of States as the trigger; it is a federal safety valve rather than an ordinary Lok Sabha majority route.
- [FACT] Article 252 begins with State initiative and produces a parliamentary law whose later amendment or repeal remains with Parliament.
- [FACT] Article 253 is especially broad because treaty implementation can require national uniformity, but neither treaty language nor international obligation displaces Fundamental Rights or judicial review.
- [LIMIT] Detailed procedure and intergovernmental operation belong to Topic 13. Topic 12 uses these Articles to explain the architecture and the Union-weighted balance.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Parliament has no general List II power; every valid entry into the State field must be tied to a distinct constitutional gateway.

MUST-WRITE KEYWORDS

Article 249; Article 250; Article 252; Article 253; Articles 356-357; constitutional gateway

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: State exclusivity is qualified, not illusory. **Named evidence:** Articles 249, 250, 252 and 253. **Analysis:** Each responds to a different coordination problem and carries a different federal safeguard. **Qualification:** The routes cannot be merged into an undefined national-interest power.

NAMED EVIDENCE

Articles 249, 250, 252, 253 and 356-357; Article 352 as the trigger for Article 250.

PRELIMS TRAP

Article 250 requires a National Emergency; Article 249 does not. Article 252 starts with State resolutions, whereas Article 253 does not require State consent in its text.

MAINS USE

Use the gateway table for Prelims matching and for a balanced answer on Union predominance.

MINI RECAP

Normal State field + specific constitutional gateways = qualified autonomy, not revocable delegation.

SESSION 7 - EXECUTIVE AND INTERGOVERNMENTAL FEDERALISM

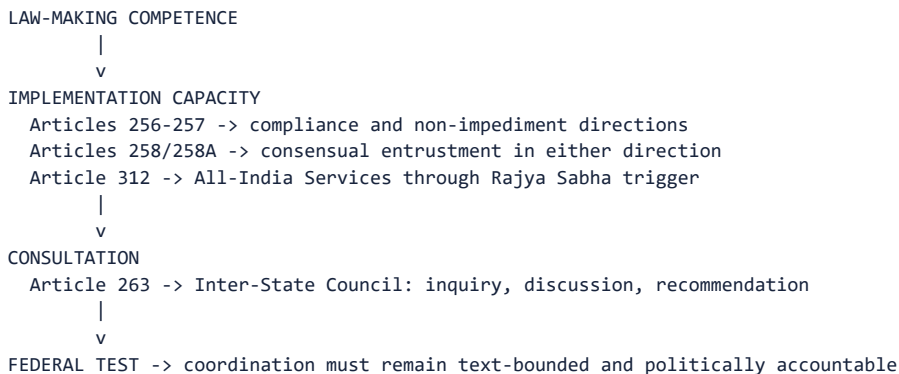
Stage: Core

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Executive federalism concerns how constitutionally separate governments implement laws and coordinate administration.

Technical definition: Articles 256-257, reciprocal entrustment, Article 263 consultation and Article 312 services create cooperation and supervision without converting State administration into a general Union hierarchy.

VISUAL FIRST



Core teaching

- [FACT] Article 256 requires State executive power to secure compliance with parliamentary laws and permits Union directions for that purpose.
- [FACT] Article 257 prevents State executive action from impeding Union executive power and authorises specified directions. These provisions do not create a general Union power to administer every State subject.
- [FACT] Articles 258 and 258A permit consensual entrustment of functions in opposite directions. Entrustment does not automatically transfer legislative ownership.
- [FACT] Article 263 enables the President to establish an Inter-State Council for inquiry, discussion and recommendation. It is a consultative forum, not a court or a third legislature.
- [FACT] Article 312 combines national services with a federal trigger in Rajya Sabha. All-India Services can strengthen common standards and administrative continuity while creating accountability concerns when cadre and elected-State priorities diverge.
- [CURRENT] The official Inter-State Council Secretariat portal remained accessible on 7 September 2026. Its continuing institutional existence does not by itself prove regular or effective political consultation.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Executive federalism works when directions remain legally bounded, shared services retain dual accountability and consultation precedes coercion.

MUST-WRITE KEYWORDS

Articles 256-257; entrustment; Article 263; Inter-State Council; Article 312; dual accountability

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Administrative interdependence requires coordination but not command. **Named evidence:** Articles 256-258A, 263 and 312. **Analysis:** Compliance, delegation, consultation and common services solve different implementation problems. **Qualification:** A consultative forum is not binding, and a direction must have constitutional footing.

NAMED EVIDENCE

Articles 256, 257, 258, 258A, 263 and 312; Inter-State Council Secretariat.

PRELIMS TRAP

Do not describe the Inter-State Council as a permanent adjudicatory body with binding awards; Article 263 assigns inquiry, discussion and recommendation functions.

MAINS USE

Use for questions on cooperative institutions, Union directions and the administrative side of federal balance.

MINI RECAP

Coordination becomes federal when the legal basis, purpose, participation and accountability of each instrument remain visible.

SESSION 8 - FINANCIAL FEDERALISM: CAPACITY, IMBALANCE AND SHARED TAXATION

Stage: Core

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Financial federalism aligns constitutional responsibilities with revenue capacity and transfer mechanisms.

Technical definition: Vertical imbalance concerns the mismatch between Union and State revenue powers and expenditure duties; horizontal imbalance concerns unequal capacity and need among States.

VISUAL FIRST

Dimension	Constitutional mechanism	Federal purpose
Tax assignment	Articles 268-270 and 269A	Allocate levy, collection, assignment and inter-State GST
Grants	Articles 275 and 282	Support need, equalisation and public purposes through distinct routes
Finance Commission	Articles 280-281	Periodic recommendations on distribution and grants
GST shared field	Articles 246A and 279A	Coordinate a common indirect-tax system
State borrowing	Article 293	Links State borrowing freedom with specified Union-debt conditions
Vertical imbalance	More buoyant Union bases versus large State service duties	Requires predictable transfers
Horizontal imbalance	Unequal fiscal capacity and expenditure need across States	Requires transparent equalisation choices

Core teaching

- [FACT] Article 280 establishes a periodic Finance Commission. Its recommendations structure tax distribution and grants, but the Commission is not a permanent intergovernmental executive.
- [FACT] Article 279A creates the GST Council. Its weighted voting design requires participation of both the Union and the States; it does not give each State an equal constitutional vote equivalent to a federal senate.
- [FACT] The official Sixteenth Finance Commission report for 2026-31 was submitted on 17 November 2025. Its official explanatory material recommends retaining the States' vertical share at 41 per cent of the divisible pool. This dated figure should not be converted into a timeless rule.
- [ANALYSIS] Cesses and surcharges outside the divisible pool, conditional centrally sponsored schemes, borrowing conditions and unequal own-tax capacity can reduce practical State choice even when formal competence remains.
- [LIMIT] Topic 12 explains the federal feature and the imbalance concepts. Formula details, individual grants and complete fiscal machinery belong to Topic 13 and the Finance Commission topic.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Federal autonomy is effective only when constitutional responsibility is matched by predictable revenue, transparent transfers and meaningful participation in shared tax decisions.

MUST-WRITE KEYWORDS

vertical imbalance; horizontal imbalance; Article 280; divisible pool; grants; Article 279A; fiscal capacity

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Fiscal federalism converts formal competence into usable governing capacity. **Named evidence:** Articles 270, 275, 280 and 279A. **Analysis:** Devolution and shared taxation respond to vertical and horizontal imbalances.

Qualification: transfer dependence and conditional finance can centralise outcomes even without changing the Lists.

NAMED EVIDENCE

Articles 268-281, 293, 246A, 269A and 279A; Sixteenth Finance Commission report for 2026-31, submitted 17 November 2025.

PRELIMS TRAP

Vertical imbalance is between levels of government; horizontal imbalance is among States. Do not reverse them or treat every grant as part of the divisible pool.

MAINS USE

Use in fiscal-federalism answers and as evidence that constitutional autonomy requires material capacity.

MINI RECAP

Revenue assignment + devolution + equalisation + negotiation determine whether State responsibilities can actually be discharged.

SESSION 9 - ADJUDICATORY FEDERALISM AND THE BASIC-STRUCTURE FLOOR

Stage: Core

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Adjudicatory federalism uses constitutional courts to police competence, arbitrate disputes and prevent exceptional Union powers from destroying the federal balance.

Technical definition: The case law moves from recognition of India's strong Union to an enforceable basic-structure limit and review of concrete federal disputes.

VISUAL FIRST

Case	Holding relevant to Topic 12	Do not overstate
<i>State of West Bengal v. Union of India</i> (1963)	States are not sovereign entities immune from valid Union power; India is not a compact of sovereign States	It did not hold that State competence is merely administrative
<i>Kesavananda Bharati</i> (1973)	Parliament's amending power is limited by Basic Structure	<i>Bommai</i> , not <i>Kesavananda</i> alone, supplies the clearest federalism application
<i>State of Rajasthan v. Union of India</i> (1977)	Pre- <i>Bommai</i> approach showed substantial caution in reviewing Article 356-related political satisfaction	It is not the final modern standard
<i>S.R. Bommai v. Union of India</i> (1994)	Federalism is a basic feature; Article 356 material is reviewable; majority ordinarily belongs on the floor	It did not repeal Article 356 or create State sovereignty
<i>Kuldip Nayar v. Union of India</i> (2006)	State residence is not indispensable for Rajya Sabha candidature; Indian federalism is not a fixed classical template	Rajya Sabha remains a Council of States

Core teaching

- [FACT] Article 131 gives the Supreme Court original jurisdiction over specified disputes between the Union and States or among States when a legal right is involved, subject to constitutional limits.
- [FACT] *S.R. Bommai* allows review of the material supporting an Article 356 proclamation and permits constitutional restoration where dismissal is invalid.
- [ANALYSIS] Basic Structure does not freeze every institutional detail. It prevents destruction of the federal principle while permitting constitutional adjustment within that boundary.
- [LIMIT] Courts are an umpire, not a substitute for councils, legislatures or fiscal negotiation. Many federal disagreements require political settlement rather than a judicial winner.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The judicial safeguard is a floor, not a complete operating manual: it prevents destruction of federalism while leaving ordinary bargaining to representative institutions.

MUST-WRITE KEYWORDS

Article 131; Basic Structure; *State of West Bengal*; *Kesavananda Bharati*; *S.R. Bommai*; *Kuldip Nayar*

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Judicial review protects the constitutional minimum of State autonomy. **Named evidence:** Article 131 and *S.R. Bommai*. **Analysis:** Review tests competence and exceptional power while enabling restoration after unconstitutional action. **Qualification:** courts cannot design every transfer, scheme or political compromise.

NAMED EVIDENCE

Article 131; *State of West Bengal v. Union of India* (1963); *Kesavananda Bharati* (1973); *State of Rajasthan* (1977); *S.R. Bommai* (1994); *Kuldip Nayar* (2006).

PRELIMS TRAP

Do not attribute the complete *Bommai* federalism holding to *Kesavananda*, and do not say *Bommai* made Article 356 non-existent.

MAINS USE

Use the chronology to separate strong-Union description, amendment limitation and operational review.

MINI RECAP

Strong Union -> limited amending power -> reviewable emergency action -> federalism protected as Basic Structure.

SESSION 10 - COOPERATIVE, COMPETITIVE AND BARGAINING FEDERALISM

Stage: Core

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: These labels describe how governments interact; they do not replace the constitutional allocation of powers.

Technical definition: Indian federal practice combines joint action, policy and investment competition, negotiation over resources and episodic confrontation or coercive pressure.

VISUAL FIRST

Mode	Operating mechanism	India-centric illustration	Limit
Cooperative	Joint institutions and implementation	GST Council, Finance Commission consultations, disaster coordination	Cooperation does not require unanimity
Competitive	Comparison, innovation and investment rivalry	State policy innovation and outcome competition	Unequal capacity can widen divergence
Bargaining	Negotiation shaped by parties, finance and implementation	Coalition politics, scheme design and tax negotiations	Bargaining power is unequal
Confrontational	Litigation or political resistance	Assent, CBI consent, water and borrowing disputes	Conflict can remain constitutional
Coercive	Formal leverage narrows practical choice	Conditional finance or broad directions	The label is analytical, not a finding about every Union action

Core teaching

- [ANALYSIS] The modes coexist. A GST issue may involve cooperation in rule-making, bargaining over rates or compensation, competition for investment and confrontation over fiscal space.
- [ANALYSIS] Granville Austin's cooperative federalism captures shared nation-building; Morris-Jones's bargaining federalism captures negotiation under unequal resources and party incentives.
- [FACT] Regional parties, coalition eras, State elections and judicial access can constrain formal Union dominance. The same party may demand autonomy in State opposition and support centralisation while controlling the Union.
- [LIMIT] Competitive federalism is beneficial only when comparison is fair and minimum capacity is protected; otherwise stronger States can convert initial advantages into cumulative gains.
- [ANALYSIS] Healthy federalism does not eliminate disagreement. It turns disagreement into reasons, institutional negotiation, legislative scrutiny, adjudication and electoral accountability.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Indian federalism is cooperative by constitutional necessity, bargaining in everyday operation and confrontational when shared institutions fail to absorb disagreement.

MUST-WRITE KEYWORDS

cooperative federalism; competitive federalism; bargaining federalism; coercive federalism; interdependence; constitutional conflict

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: No single label captures the working federation. **Named evidence:** GST Council, Finance Commission, Inter-State Council, coalition politics and Article 131 litigation. **Analysis:** Different issues generate different combinations of cooperation and conflict. **Qualification:** an analytical label must be tied to a mechanism and evidence, not used as a slogan.

NAMED EVIDENCE

Article 263 institutions; Articles 279A and 280; *S.R. Bommai*; Granville Austin and Morris-Jones as qualified analytical authorities.

PRELIMS TRAP

Cooperative federalism does not mean binding consensus, competitive federalism does not eliminate solidarity, and confrontation does not automatically prove constitutional breakdown.

MAINS USE

Use directly for UPSC GS-II 2020 and for current Centre-State evaluation.

MINI RECAP

Identify the mode -> name the mechanism -> show benefit and risk -> give a graded verdict.

SESSION 11 - GST COUNCIL AS A SHARED-RULE INSTITUTION

Stage: Synthesis

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The GST Council coordinates taxation that the Constitution distributes simultaneously between Parliament and State legislatures.

Technical definition: Articles 246A, 269A and 279A create pooled fiscal authority; *Mohit Minerals* confirms that Council recommendations structure dialogue without legally binding the legislatures.

VISUAL FIRST

```
101st AMENDMENT, 2016
|
+--> ARTICLE 246A: simultaneous GST competence
+--> ARTICLE 269A: inter-State supply levy and apportionment
+--> ARTICLE 279A: Council recommendation and weighted voting
|
v
COLLABORATIVE DIALOGUE -> harmonisation and common market
|
v
MOHIT MINERALS, 2022 -> recommendations are not binding
|
v
BALANCE -> coordination without extinguishing legislative authority
```

Core teaching

- [FACT] The One Hundred and First Amendment, enacted in 2016, reorganised indirect-tax competence by creating a special shared field rather than simply moving a subject from one List to another.
- [FACT] Article 279A constitutionally includes the Union and States and uses weighted voting designed so that neither side can ordinarily decide alone.
- [FACT] In *Union of India v. Mohit Minerals* (19 May 2022), the Supreme Court held that GST Council recommendations are not binding on the Union and States. They have persuasive value within a constitutional dialogue.
- [ANALYSIS] Non-binding does not mean irrelevant. Political commitments, harmonisation needs, market effects and institutional practice give recommendations substantial practical influence.
- [CURRENT] On 7 September 2026, the official GST Council portal continued to describe its vision in terms of high standards of cooperative federalism and wider consultation.
- [LIMIT] Detailed GST rates, voting arithmetic and tax administration belong to the GST Council topic; here the Council demonstrates shared rule.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The GST Council constitutionalises negotiation: it coordinates a common market without converting its recommendations into commands that erase legislative competence.

MUST-WRITE KEYWORDS

One Hundred and First Amendment; Article 246A; Article 269A; Article 279A; collaborative dialogue; Mohit Minerals

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: GST is a constitutional experiment in shared fiscal rule. **Named evidence:** Articles 246A, 269A and 279A plus *Mohit Minerals*. **Analysis:** Coordination reduces fragmentation while legislative autonomy preserves the federal balance. **Qualification:** recommendations are influential and institutionally important, but not binding law merely because the Council adopted them.

NAMED EVIDENCE

One Hundred and First Amendment Act, 2016; Articles 246A, 269A and 279A; *Union of India v. Mohit Minerals* (2022); official GST Council portal.

PRELIMS TRAP

Never state after *Mohit Minerals* that GST Council recommendations bind Parliament or State legislatures.

MAINS USE

Use as the strongest contemporary illustration of cooperative, bargaining and occasionally confrontational federalism.

MINI RECAP

Shared competence -> Council negotiation -> persuasive recommendation -> legislation by competent governments.

SESSION 12 - ASYMMETRICAL FEDERALISM: DIFFERENCE WITHIN COMMON CITIZENSHIP

Stage: Synthesis

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Asymmetrical federalism gives different territorial units different constitutional arrangements to accommodate history, identity, geography or governance needs.

Technical definition: India's Fifth and Sixth Schedules, Article 371 family, Article 239AA and post-2019 Jammu and Kashmir arrangement illustrate differentiated authority without creating unequal national citizenship.

VISUAL FIRST

Arrangement	Federal purpose	Precise boundary
Fifth Schedule	Governance safeguards for Scheduled Areas and Scheduled Tribes	Does not create autonomous district councils on the Sixth Schedule model
Sixth Schedule	Autonomous district and regional councils in specified tribal areas of Assam, Meghalaya, Tripura and Mizoram	Applies only to the constitutionally specified areas
Articles 371-371J	State-specific arrangements responding to distinct histories and needs	The clauses differ; no single uniform privilege exists
Article 239AA	Legislature and Council of Ministers for NCT Delhi within a Union Territory design	Public order, police and land remain excluded fields
Jammu and Kashmir after 2019	Union Territory of J&K with legislature; Ladakh as Union Territory	Article 370 is not a live special-status basis

Core teaching

- [FACT] Asymmetry is a constitutional technique of accommodation. It may allocate different institutions, procedures or protections while preserving one citizenship and one constitutional order.
- [FACT] The Fifth and Sixth Schedules are not interchangeable. The Sixth Schedule creates autonomous district and regional councils in specified north-eastern tribal areas; the Fifth Schedule uses a different Governor, Tribes Advisory Council and Scheduled Area framework.

- [FACT] In the 2018 NCT Delhi Constitution Bench judgment, the Court emphasised representative government and collaborative federalism within Article 239AA's distinct design. The 11 May 2023 services judgment recognised the elected government's authority over services outside public order, police and land under the then governing framework; later 2023 parliamentary legislation altered the statutory arrangement.
- [FACT] The 11 December 2023 Article 370 judgment upheld the 2019 constitutional changes, accepted Ladakh's Union Territory status and did not finally decide the validity of reducing J&K to a Union Territory because the Union assured restoration of statehood. The Court set no date for statehood restoration.
- [CURRENT] Official J&K and Ladakh government portals continued to identify both as Union Territories on 7 September 2026.
- [LIMIT] Asymmetry concerns differentiated governance, not different grades of Indian citizenship.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Indian asymmetry preserves common citizenship while tailoring territorial institutions to distinct historical, tribal and metropolitan conditions.

MUST-WRITE KEYWORDS

asymmetrical federalism; Fifth Schedule; Sixth Schedule; Articles 371-371J; Article 239AA; common citizenship

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Uniformity is not the only path to unity. **Named evidence:** Fifth and Sixth Schedules, Article 371 family and Article 239AA. **Analysis:** Differentiated institutions can integrate diversity by giving constitutionally bounded autonomy. **Qualification:** every special arrangement has its own text and cannot be generalised into sovereign or unequal citizenship.

NAMED EVIDENCE

Fifth and Sixth Schedules; Articles 239AA and 371-371J; 2018 and 2023 NCT Delhi judgments; *In Re: Article 370* (2023).

PRELIMS TRAP

Do not cite Article 370 as a current source of special State autonomy, and do not treat every Article 371 clause as identical.

MAINS USE

Use for diversity, tribal governance, Delhi, J&K and the difference between equality and uniformity.

MINI RECAP

Common citizenship + differentiated institutions + bounded autonomy = asymmetrical federal accommodation.

SESSION 13 - TERRITORIAL AND FUNCTIONAL FEDERALISM, INCLUDING THE LOCAL TIER

Stage: Synthesis

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Territorial federalism divides authority by level and territory; functional federalism organises collaboration around tasks that cross jurisdictional boundaries.

Technical definition: India combines Union-State territorial competence with task-based cooperation in taxation, welfare, disasters, infrastructure and regulation, while local bodies remain constitutionally recognised but State-empowered institutions.

VISUAL FIRST

Axis	Question asked	Indian illustration	Constitutional caution
Territorial federalism	Which level governs this territory or subject?	Articles 1, 3 and Seventh Schedule	Boundary change does not erase State competence
Functional federalism	Which governments must cooperate to deliver this function?	GST, disaster response, health and infrastructure	Cooperation does not create an extra sovereign level
Multi-level governance	How are Union, State and local institutions connected?	Parts IX and IXA; Finance Commission links	Articles 243G and 243W leave devolution to State law
Intergovernmental process	How are overlap and disagreement managed?	Councils, committees, fiscal transfers and courts	Informal coordination must remain accountable

Core teaching

- [FACT] Article 3 permits territorial adaptation, as seen historically in linguistic reorganisation. Territorial flexibility can reduce conflict by aligning political units with identity and administrative viability.
- [ANALYSIS] Functional federalism recognises that subjects on paper generate shared implementation: public health, environmental regulation, migration, disaster response and markets routinely cross borders.
- [FACT] The Seventy-third and Seventy-fourth Amendments constitutionalised panchayats and municipalities. However, Articles 243G and 243W authorise State legislatures to endow them with powers; local bodies do not become co-sovereign constituent units equivalent to the Union and States.
- [ANALYSIS] A useful answer can call India a multi-level governance system, but it should reserve the legal term federation for the Union-State constitutional division.
- [LIMIT] Detailed local-government composition, reservation, finance and elections belong to their own topics.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

India's federal map is territorial, but its governance is increasingly functional; tasks cross boundaries even when constitutional sovereignty does not.

MUST-WRITE KEYWORDS

territorial federalism; functional federalism; Article 3; Parts IX and IXA; Articles 243G and 243W; multi-level governance

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Modern federalism allocates territory but governs through interdependence. **Named evidence:** Article 3, the Seventh Schedule and Parts IX-IXA. **Analysis:** Territorial units retain constitutional fields while shared functions require coordination across levels. **Qualification:** local constitutional status does not create a third co-sovereign federation.

NAMED EVIDENCE

Articles 1, 3, 243G and 243W; Seventh Schedule; States Reorganisation Act, 1956.

PRELIMS TRAP

The phrase 'third tier' is useful for decentralised governance, but it must not be converted into a claim that panchayats and municipalities share constituent sovereignty with Union and States.

MAINS USE

Use to add conceptual depth to local-government, public-service and intergovernmental-process answers.

MINI RECAP

Territory allocates authority; functions create interdependence; accountability must connect both.

SESSION 14 - GOVERNORS, EMERGENCY POWER AND CURRENT FEDERAL ADJUDICATION

Stage: Synthesis

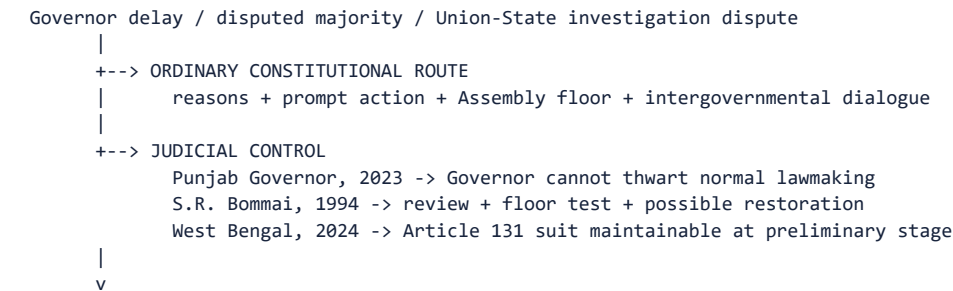
DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Federal friction becomes constitutionally serious when an unelected office or exceptional power can delay or displace an elected State government.

Technical definition: Articles 200, 355-356 and judicial review require prompt constitutional action, floor-based majority testing and a distinction between Union duty and the exceptional remedy of President's Rule.

VISUAL FIRST

FEDERAL FRICTION



LIMIT: Article 355 duty does not automatically establish Article 356 breakdown

Core teaching

- [FACT] Article 355 imposes a Union duty to protect States against external aggression and internal disturbance and to ensure constitutional government. It is not a self-executing licence for any coercive measure.
- [FACT] Article 356 requires satisfaction that State government cannot be carried on according to the Constitution. *S.R. Bommai* makes the supporting material reviewable and ordinarily requires disputed legislative majority to be tested on the Assembly floor.
- [FACT] In *State of Punjab v. Principal Secretary to the Governor of Punjab* (10 November 2023), the Supreme Court rejected indefinite gubernatorial inaction and stressed that an unelected Governor cannot use constitutional office to thwart the normal lawmaking course.
- [FACT] In *State of West Bengal v. Union of India* (10 July 2024; 2024 INSC 502), the Supreme Court rejected the Union's preliminary objection and allowed West Bengal's Article 131 suit concerning post-withdrawal CBI action to proceed. It did **not** finally decide the merits of every investigation.
- [ANALYSIS] Federalism is protected both by legal remedies and by conventions of restraint. Judicial review can reopen a blocked channel, but recurring friction requires better political practice.
- [LIMIT] Full Governor assent procedure, Article 356 duration and CBI statutory detail belong to Topics 19, 14 and 13 respectively.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Federal restraint requires elected government to remain primary, exceptional Union power to remain reviewable and constitutional heads to keep channels moving rather than block them.

MUST-WRITE KEYWORDS

Article 355; Article 356; floor test; Governor; Article 200; Article 131; constitutional restraint

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Exceptional and unelected authority must not displace ordinary representative government. **Named evidence:** *S.R. Bommai*, the 2023 Punjab Governor judgment and the 2024 West Bengal ruling. **Analysis:** Review, floor testing and prompt constitutional action preserve the federal process. **Qualification:** courts decide legal boundaries, not every political disagreement.

NAMED EVIDENCE

Articles 131, 200, 355 and 356; *S.R. Bommai* (1994); *State of Punjab v. Principal Secretary to the Governor of Punjab* (2023); *State of West Bengal v. Union of India* (2024).

PRELIMS TRAP

Do not treat Article 355 as automatic authority for Article 356, and do not treat the 2024 West Bengal maintainability ruling as a final merits judgment.

MAINS USE

Use for Governor friction, emergency misuse, central agencies and the role of constitutional courts.

MINI RECAP

Duty -> bounded action -> floor or forum -> review -> restoration or negotiated compliance.

SESSION 15 - CHALLENGES, REFORMS AND THE QUALIFIED FEDERAL VERDICT

Stage: Advanced synthesis

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The central federal problem is not choosing a label but keeping national capacity compatible with State autonomy, fiscal capability and constitutional trust.

Technical definition: A durable federation needs predictable finance, neutral constitutional offices, regular consultation, effective dispute channels, regional voice and real local devolution without weakening legitimate Union responsibilities.

VISUAL FIRST

Challenge	Why it strains federalism	Balanced reform
Governor friction	Delays elected State lawmaking or majority proof	Neutral appointments, reasoned prompt action, floor-test discipline
Fiscal centralisation	Dependence may narrow State policy choice	Predictable transfers, transparent cesses, flexible scheme design
Centrally sponsored schemes	Uniform conditions may ignore local need	Early State consultation and outcome-based flexibility
GST bargaining	Common-market gains coexist with autonomy and compensation disputes	Published reasons, credible dispute resolution, consensus-seeking
Inter-State disputes	Water, boundaries and externalities generate durable conflict	Timely adjudication plus negotiated implementation
Regional representation	Population and demographic performance create competing fairness claims	Transparent, consultative constitutional reform
Emergency misuse	Exceptional power can remove elected government	<i>Bommai</i> review, warning, alternatives and floor tests
Weak local devolution	Service delivery remains distant despite Parts IX-IXA	Functions, funds and staff through State legislation
Irregular consultation	Executive decisions acquire coercive appearance	Regular Inter-State Council and stronger parliamentary scrutiny

Core teaching

- [ANALYSIS] A capable Union is necessary for defence, macroeconomic coordination, common markets, rights protection and cross-border problems. The reform objective is not automatic decentralisation.

- [ANALYSIS] States need policy space because they carry major delivery responsibilities, vary in conditions and serve as laboratories of democratic innovation.
- [ANALYSIS] Intergovernmental bodies should institutionalise disagreement: agendas, reasons, data and follow-up make cooperation more than ceremonial consultation.
- [FACT] Sarkaria and Punchhi Commission recommendations remain persuasive reform evidence, not binding constitutional law. The Rajamannar Committee represents a stronger State-autonomy critique.
- [ANALYSIS] Rajya Sabha should be described as a State-representative chamber, not an equal-State chamber. Its federal role can be improved through scrutiny, consultation and serious use of Articles 249 and 312.
- [LIMIT] 'Quasi-federal' is useful only if explained. It should never replace the safer conclusion that India is constitutionally federal, asymmetrical and Union-weighted, with working modes that vary by issue and period.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

India is neither purely federal nor purely unitary: it is a constitutionally federal, Union-weighted and asymmetrical system whose legitimacy depends on consultation, restraint and workable fiscal capacity.

MUST-WRITE KEYWORDS

constitutional trust; predictable finance; neutral Governor; Inter-State Council; regional representation; local devolution; qualified verdict

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: The future of Indian federalism depends on the manner of exercising power, not only on its textual location.

Named evidence: *Bommai*, Articles 263, 279A and 280, and Sarkaria/Punchhi recommendations. **Analysis:**

Consultation, predictable resources and review turn central capacity into legitimate coordination. **Qualification:** reform must preserve national action where externalities, rights and security genuinely require it.

NAMED EVIDENCE

Sarkaria Commission, Punchhi Commission and Rajamannar Committee; Articles 263, 279A and 280; *S.R. Bommai* and *Mohit Minerals*.

PRELIMS TRAP

Avoid absolute labels. 'Cooperative', 'competitive', 'bargaining' and 'asymmetric' are analytical descriptions that require an issue, institution and qualification.

MAINS USE

Use as the final evaluative section in 15- and 20-mark answers and as the conclusion to the topic.

MINI RECAP

Strong Union + protected States + usable finance + consultation + review = federal capacity with constitutional trust.

Exactly **32 original MCQs** follow. Q1-Q24 diagnose the full syllabus spine; Q25-Q32 remediate close distinctions. Correct options follow ABCD eight times. Every option has a question-specific explanation and every question ends with a unique trap.

BASIC MCQS / REMEDIATION

Q1. Which proposition most accurately identifies the federal principle?

A. The Constitution protects authority of general and regional governments in assigned spheres. B. Every regional authority must possess a unilateral right to secede. C. A national government is federal only when it is institutionally weak. D. A federation necessarily maintains two completely separate court systems.

Answer: A.

- **A:** Correct. Constitutional allocation gives both levels direct authority and distinguishes federal self-rule from revocable administrative delegation.
- **B:** Incorrect. A federation normally forms one constitutional order; secession is not an essential feature of federalism.

- **C:** Incorrect. Federalism tests protected regional competence, not whether the Union lacks national coordinating capacity.
- **D:** Incorrect. India has an integrated judiciary, yet courts still enforce the federal allocation under one supreme Constitution.

Examiner trap: Do not substitute a textbook institutional form for the controlling test of constitutionally protected divided authority.

Q2. With reference to Articles 1 and 3, which statement is most accurate?

A. Every alteration of a State boundary requires that State legislature's consent. B. India is a Union of States, and Parliament may reorganise States after seeking the affected State legislature's views. C. Article 3 gives States a constitutional right to secede after consultation. D. A law under Article 3 must always satisfy the special amendment procedure in Article 368.

Answer: B.

- **A:** Incorrect. The President must refer the proposal for views, but the affected legislature's consent does not bind Parliament.
- **B:** Correct. The Union is not a compact with secession, while territorial change follows the consultative Article 3 process.
- **C:** Incorrect. Article 1 and the constitutional design reject a unilateral State right to leave the Union.
- **D:** Incorrect. Article 4 states that supplemental territorial provisions under Articles 2 and 3 are not Article 368 amendments.

Examiner trap: State consultation under Article 3 is mandatory as a step, but State approval is not a constitutional veto.

Q3. Which statement about the Government of India Act, 1935 is correct?

A. Its All-India Federation began operating immediately in 1937. B. It abolished provincial autonomy and restored dyarchy in every provincial subject. C. It proposed an All-India Federation, introduced provincial autonomy and used a three-List distribution, but the federation did not operate. D. It vested residuary power permanently in elected provincial legislatures.

Answer: C.

- **A:** Incorrect. The accession condition for the princely States was not fulfilled, so the proposed federal centre never commenced.
- **B:** Incorrect. The Act replaced provincial dyarchy with provincial autonomy, although safeguards and gubernatorial powers remained extensive.
- **C:** Correct. Those features made the Act an important antecedent without turning its uncommenced federation into historical fact.
- **D:** Incorrect. Residuary authority under the 1935 scheme was associated with the Governor-General, not the elected provinces.

Examiner trap: Differentiate 'provided for a federation' from 'brought the federation into operation'.

Q4. Which combination most directly secures a classical federal distribution in India?

A. Single citizenship, All-India Services and emergency powers B. Governor appointment, integrated audit and Article 3 C. Parliamentary government, Fundamental Duties and universal franchise D. A written supreme Constitution, divided legislative fields, selective rigidity and independent judicial review

Answer: D.

- **A:** Incorrect. These are principally integrating or centralising features rather than the safeguards of divided competence.
- **B:** Incorrect. The group illustrates Union influence and territorial flexibility, not the core federal protection package.
- **C:** Incorrect. These are important constitutional features but do not by themselves establish a federal allocation.

- **D:** Correct. Textual allocation, supremacy, entrenchment and an umpire make regional competence legally durable.

Examiner trap: A feature may be democratic or constitutional without being specifically federal.

Q5. Which statement about Rajya Sabha is correct?

A. It represents States in Parliament, but its seats are not distributed equally among all States. B. Every State has the same number of Rajya Sabha members. C. Only State legislatures may initiate constitutional amendments affecting federal provisions. D. Rajya Sabha alone can enact a law altering State boundaries.

Answer: A.

- **A:** Correct. The Fourth Schedule differentiates State representation broadly by population while retaining a federal chamber.
- **B:** Incorrect. Equal State representation is a feature of some federations, not the Indian Council of States.
- **C:** Incorrect. Constitutional amendment Bills begin in Parliament; States participate only through ratification where Article 368 requires it.
- **D:** Incorrect. Parliament legislates under Article 3 through the ordinary bicameral process, not Rajya Sabha acting alone.

Examiner trap: State representation and equal State representation are different propositions.

Q6. Residuary legislative power under the Indian Constitution primarily belongs to:

A. State legislatures through State List Entry 1. B. Parliament under Article 248 read with Union List Entry 97. C. The Inter-State Council under Article 263. D. The Supreme Court through Article 131.

Answer: B.

- **A:** Incorrect. State List Entry 1 concerns public order and does not supply a general residuary competence.
- **B:** Correct. Article 248 and Entry 97 allocate unenumerated legislative matters and residuary taxation to Parliament, subject to later GST design.
- **C:** Incorrect. The Inter-State Council is a consultative mechanism and has no independent legislative field.
- **D:** Incorrect. Article 131 grants original judicial jurisdiction over specified disputes, not lawmaking power.

Examiner trap: Do not import the American allocation of residue to constituent units into the Indian scheme.

Q7. Article 246A is best understood as:

A. a new entry added to the Concurrent List. B. a power allowing only Parliament to legislate on all GST supplies. C. a special constitutional grant of simultaneous GST competence, with a distinct rule for inter-State supplies. D. a provision making GST Council recommendations automatically enforceable.

Answer: C.

- **A:** Incorrect. Article 246A is a standalone constitutional competence provision rather than a Seventh Schedule entry.
- **B:** Incorrect. State legislatures also possess GST competence, while Parliament has the specified exclusive inter-State role.
- **C:** Correct. The provision creates shared competence and must be read with Articles 269A and 279A.
- **D:** Incorrect. Legislative competence and the legal effect of Council recommendations are separate questions.

Examiner trap: Special concurrent competence under Article 246A is not the same as placing GST in List III.

Q8. Which statement correctly describes Article 254?

A. It resolves every constitutional disagreement between the Union and a State. B. It always invalidates a State law once Parliament legislates on any subject. C. Presidential assent makes a State law permanently immune from later parliamentary law. D. It principally governs repugnancy on Concurrent subjects, with a State-specific assent exception that Parliament may later override.

Answer: D.

- **A:** Incorrect. Many disputes concern competence, executive power or constitutional rights and never enter Article 254.
- **B:** Incorrect. Parliamentary priority depends on the constitutional field and an actual repugnancy, not mere legislative activity.
- **C:** Incorrect. Article 254(2) preserves local operation after assent but expressly leaves later parliamentary override possible.
- **D:** Correct. The provision supplies a priority rule for irreconcilable Concurrent-field conflict and a qualified State-law exception.

Examiner trap: Repugnancy is narrower than overlap: first identify the field and attempt harmonious operation.

Q9. Parliament's power under Article 249 is activated by:

A. a Rajya Sabha resolution supported by two-thirds of members present and voting that national interest requires parliamentary legislation. B. a simple majority resolution of Lok Sabha declaring any subject important. C. identical resolutions of every State legislature. D. a declaration by the Finance Commission.

Answer: A.

- **A:** Correct. The Council of States supplies the special federal trigger and the resolution operates for a limited renewable period.
- **B:** Incorrect. Article 249 deliberately assigns the triggering role to Rajya Sabha and prescribes a special present-and-voting threshold.
- **C:** Incorrect. State resolutions belong to Article 252, and even there two or more States can initiate the route.
- **D:** Incorrect. The Finance Commission recommends fiscal distribution and has no Article 249 legislative trigger.

Examiner trap: Article 249 is the national-interest route through Rajya Sabha, not a general Lok Sabha override.

Q10. Which proposition about Article 250 is correct?

A. It operates whenever President's Rule exists in any State. B. It permits Parliament to legislate on State subjects while a National Emergency is in operation, with the law continuing for six months after the Emergency ends. C. It requires prior resolutions from two State legislatures. D. It permanently transfers the subject from List II to List I.

Answer: B.

- **A:** Incorrect. President's Rule is governed by Articles 356-357; Article 250 is tied to Article 352 National Emergency.
- **B:** Correct. The power and the six-month survival rule are temporary consequences of an operating National Emergency.
- **C:** Incorrect. State initiative is the defining feature of Article 252, not Article 250.
- **D:** Incorrect. The constitutional List remains unchanged after the temporary parliamentary law ceases to have effect.

Examiner trap: Match the emergency correctly: Article 250 follows Article 352, not every proclamation in Part XVIII.

Q11. A law made by Parliament under Article 252:

A. automatically applies to every State from enactment. B. may be repealed independently by each requesting State legislature. C. applies to requesting or later-adopting States, while Parliament retains amendment and repeal power. D. requires a prior National Emergency.

Answer: C.

- **A:** Incorrect. The law initially binds the States whose legislatures requested parliamentary action.
- **B:** Incorrect. Once enacted under Article 252, amendment or repeal belongs to Parliament rather than an individual participating State.
- **C:** Correct. Other States may adopt the parliamentary law later, preserving a consent-based expansion mechanism.
- **D:** Incorrect. The route depends on State resolutions, not an Article 352 proclamation.

Examiner trap: State consent initiates and expands Article 252, but it does not leave unilateral State repeal power.

Q12. Article 253 enables Parliament to:

A. abolish judicial review whenever an international agreement is signed. B. alter a State boundary without following Article 3. C. legislate only after every affected State grants consent. D. implement treaties, agreements, conventions or international decisions even when legislation touches a State subject.

Answer: D.

- **A:** Incorrect. Treaty implementation remains subject to Fundamental Rights, judicial review and other constitutional limitations.
- **B:** Incorrect. Territorial reorganisation continues to be governed by Articles 2-4.
- **C:** Incorrect. Article 253 does not textually require State consent before Parliament legislates for treaty implementation.
- **D:** Correct. The provision supplies a national implementation power capable of reaching matters otherwise within List II.

Examiner trap: Article 253 widens legislative reach for implementation; it does not suspend the Constitution.

Q13. Articles 256 and 257 are most accurately described as:

A. text-bounded Union coordination and direction powers concerning compliance and non-impediment. B. a general transfer of all State executive power to the Union. C. judicial provisions authorising the Supreme Court to issue advisory opinions. D. fiscal provisions distributing the divisible pool.

Answer: A.

- **A:** Correct. They connect State administration to applicable Union law and protect Union executive power from obstruction.
- **B:** Incorrect. States retain executive authority; directions must rest on the constitutional purposes and fields specified.
- **C:** Incorrect. Supreme Court advisory jurisdiction is found in Article 143, not Articles 256-257.
- **D:** Incorrect. Tax distribution is addressed principally in Part XII, including Article 270.

Examiner trap: A constitutional direction power is not a standing licence for central administration of every State subject.

Q14. Which statement about Article 263 is correct?

A. It automatically creates a permanent court for all inter-State disputes. B. It enables the President to establish a council for inquiry, discussion and recommendation on intergovernmental questions. C. It makes every council recommendation binding on Parliament and States. D. It concerns only the distribution of tax revenues.

Answer: B.

- **A:** Incorrect. Article 263 is enabling and consultative; adjudicatory routes arise from other constitutional or statutory provisions.
- **B:** Correct. The provision can support investigation, discussion and recommendations to improve coordination.
- **C:** Incorrect. The Inter-State Council's recommendations do not acquire binding legislative force merely through Article 263.
- **D:** Incorrect. Fiscal distribution is centred on provisions such as Articles 270 and 280.

Examiner trap: Consultation, adjudication and legislation are distinct functions even when all address intergovernmental conflict.

Q15. Which constitutional statement about All-India Services is correct?

A. They can be created by an ordinary executive order of the Union Cabinet. B. Every State legislature must pass an identical law before creation. C. Article 312 requires a Rajya Sabha national-interest resolution by two-thirds of members present and voting before Parliament creates a new service. D. Their officers are accountable only to the Union while serving in State cadres.

Answer: C.

- **A:** Incorrect. A new All-India Service requires the Article 312 parliamentary route, not executive instruction alone.
- **B:** Incorrect. The constitutional trigger is a special Rajya Sabha resolution rather than identical State statutes.
- **C:** Correct. The Council of States authorises Parliament to legislate, combining national administration with a federal safeguard.
- **D:** Incorrect. Service in State cadres creates responsibilities within State administration alongside Union-level cadre arrangements.

Examiner trap: Article 312 uses Rajya Sabha as a federal gate; it does not require unanimous State consent.

Q16. Which relationship between Articles 355 and 356 is most accurate?

A. Every Article 355 concern automatically compels President's Rule. B. Article 355 itself transfers State legislative power to Parliament. C. Article 356 is immune from judicial review because Article 355 imposes a Union duty. D. Article 355 states a Union duty, while Article 356 supplies an exceptional, separately conditioned and reviewable remedy.

Answer: D.

- **A:** Incorrect. Internal difficulty or a protection duty does not by itself prove constitutional government has become impossible.
- **B:** Incorrect. Parliamentary exercise of State legislative power arises through Articles 356-357 after a valid proclamation.
- **C:** Incorrect. *S.R. Bommai* confirms review of the proclamation's supporting material and constitutional purpose.
- **D:** Correct. Duty and remedy have different legal functions, thresholds and consequences.

Examiner trap: Never use Article 355 as a shortcut around the distinct Article 356 threshold.

Q17. Which amendment proposition best protects the federal compact?

A. Specified federal changes under Article 368 require a parliamentary special majority and ratification by at least half of State legislatures. B. Every constitutional amendment requires ratification by all States. C. State legislatures may introduce Article 368 amendment Bills. D. A Governor's assent is required for a State ratification resolution.

Answer: A.

- **A:** Correct. The proviso to Article 368 gives States a limited but real role over enumerated federal subjects.
- **B:** Incorrect. Most amendments do not require State ratification, and the federal category requires at least half rather than unanimity.
- **C:** Incorrect. Amendment Bills may be introduced only in either House of Parliament.
- **D:** Incorrect. State ratification occurs by legislative resolution and has no separate gubernatorial-assent stage.

Examiner trap: Selective rigidity protects named federal matters; it is not a universal State veto over amendment.

Q18. What is the safest use of *State of West Bengal v. Union of India (1963)*?

A. It recognised a unilateral State right to secede from India. B. It rejected sovereign-compact immunity of States from constitutionally valid Union power. C. It held that State legislative fields are merely administrative delegations. D. It made Article 3 dependent on unanimous State consent.

Answer: B.

- **A:** Incorrect. The Constitution creates an indestructible Union without a unilateral State secession right.
- **B:** Correct. The case supports the strong-Union proposition that States are not sovereign entities outside the constitutional order.
- **C:** Incorrect. The ruling did not erase the Seventh Schedule or reduce State competence to ordinary Union delegation.
- **D:** Incorrect. Article 3 requires consultation through the constitutional process, not unanimity.

Examiner trap: The case denies sovereign State immunity; it does not deny constitutional federalism.

Q19. Which proposition follows most directly from *S.R. Bommai v. Union of India (1994)*?

A. Article 356 can be invoked only after a constitutional amendment. B. States possess sovereignty equal to the Union in international law. C. Federalism is a basic feature, Article 356 material is reviewable and disputed majority ordinarily belongs on the Assembly floor. D. The Governor's report conclusively binds Parliament and courts.

Answer: C.

- **A:** Incorrect. Article 356 remains an operative constitutional power subject to its own procedure and judicial review.
- **B:** Incorrect. Indian States exercise constitutional autonomy within one sovereign Union and do not conduct independent foreign relations.
- **C:** Correct. The judgment joins basic-structure protection with practical controls on partisan displacement of State government.
- **D:** Incorrect. Courts may examine relevant material, and a Governor's assessment cannot replace a proper floor test.

Examiner trap: Bommai constitutionalises restraint; it neither abolishes Article 356 nor creates co-equal sovereign States.

Q20. What does *Kuldip Nayar v. Union of India* (2006) most safely establish for this topic?

A. Rajya Sabha has ceased to represent States. B. Every federation must require equal seats and State domicile. C. Open ballot and residence rules are irrelevant to constitutional review. D. A State residence requirement for Rajya Sabha candidature is not indispensable to India's distinctive federal design.

Answer: D.

- **A:** Incorrect. Rajya Sabha remains constitutionally designated as the Council of States.
- **B:** Incorrect. Classical models inform comparison but do not rigidly determine every Indian federal institution.
- **C:** Incorrect. Institutional rules remain reviewable; the case assessed their compatibility rather than declaring them legally irrelevant.
- **D:** Correct. The Court rejected the claim that domicile was an essential federal requirement in the Indian constitutional arrangement.

Examiner trap: Use *Kuldip Nayar* to qualify textbook federalism, not to erase Rajya Sabha's federal role.

Q21. After *Union of India v. Mohit Minerals* (2022), GST Council recommendations are:

A. persuasive products of collaborative dialogue, not binding commands to the Union or State legislatures. B. binding only on States and optional for Parliament. C. equivalent to constitutional amendments once adopted by vote. D. unenforceable suggestions with no constitutional significance.

Answer: A.

- **A:** Correct. The judgment preserves legislative autonomy while recognising the Council's constitutional and practical importance.
- **B:** Incorrect. The Court did not create an asymmetric rule binding States alone.
- **C:** Incorrect. Article 279A recommendations do not bypass legislation or the Article 368 amendment procedure.
- **D:** Incorrect. Non-binding recommendations can still structure harmonisation, political commitment and cooperative bargaining.

Examiner trap: Non-binding does not mean meaningless; influential consultation and legal compulsion are different.

Q22. Which statement best describes the GST Council's federal design?

A. Every State has a constitutional veto over each recommendation. B. Weighted voting requires both Union and collective State participation for the prescribed majority. C. The Union's vote alone satisfies the constitutional decision threshold. D. The Council replaces Parliament and State legislatures as the taxing authority.

Answer: B.

- **A:** Incorrect. Individual States participate, but Article 279A does not grant each one a unilateral veto.
- **B:** Correct. The weight structure makes shared participation necessary and encourages negotiated outcomes.
- **C:** Incorrect. The Union's one-third weight cannot by itself reach the three-fourths decision threshold.
- **D:** Incorrect. Legislative competence remains with Parliament and State legislatures under Article 246A.

Examiner trap: Council voting coordinates governments; it does not transfer legislative sovereignty to the Council.

Q23. The Finance Commission under Article 280 is:

A. a permanent chamber representing States equally. B. an executive council whose directions bind State budgets. C. a periodic constitutional body recommending tax distribution and grants. D. the adjudicator of all disputes under Article 131.

Answer: C.

- **A:** Incorrect. Rajya Sabha is the continuing parliamentary chamber; the Finance Commission is periodically constituted.
- **B:** Incorrect. It recommends fiscal arrangements and does not administer every State budget.
- **C:** Correct. Article 280 provides the constitutional mechanism for periodic recommendations on devolution and specified grants.

- **D:** Incorrect. Article 131 original jurisdiction belongs to the Supreme Court.

Examiner trap: Do not confuse recommendatory fiscal equalisation with binding executive control.

Q24. Which pairing is correct?

A. Vertical imbalance - unequal fiscal capacity among States B. Horizontal imbalance - mismatch between Union revenue and State expenditure responsibilities C. Vertical imbalance - only differences in population size D. Horizontal imbalance - differences in fiscal capacity and expenditure need among States

Answer: D.

- **A:** Incorrect. Differences among States define the horizontal dimension rather than the vertical Union-State mismatch.
- **B:** Incorrect. Revenue-expenditure mismatch between governmental levels is vertical imbalance.
- **C:** Incorrect. Population may influence need, but vertical imbalance concerns assignment across levels of government.
- **D:** Correct. Horizontal imbalance compares States' ability to raise revenue and meet differing needs.

Examiner trap: Vertical compares levels; horizontal compares constituent units.

Q25. Which distinction between the Fifth and Sixth Schedules is accurate?

A. The Sixth Schedule creates autonomous district and regional councils in specified tribal areas, while the Fifth Schedule uses a different Scheduled Area and Tribes Advisory Council framework. B. Both Schedules apply uniformly to every tribal area in India. C. The Fifth Schedule gives each Scheduled Area a separate State constitution. D. The Sixth Schedule abolishes the authority of the concerned State legislature.

Answer: A.

- **A:** Correct. The two schedules embody different institutional techniques and different territorial coverage.
- **B:** Incorrect. Their application is constitutionally specified and neither is a universal tribal-governance code.
- **C:** Incorrect. Fifth Schedule protection operates within the Constitution of India and does not create separate constitutions.
- **D:** Incorrect. Autonomous councils possess defined powers without eliminating the State's constitutional role.

Examiner trap: Asymmetry requires clause-by-clause precision; Fifth and Sixth Schedule institutions are not interchangeable.

Q26. Article 239AA illustrates asymmetrical federalism because it:

A. makes Delhi a full State with authority over every State List subject. B. creates an elected legislature and ministry for NCT Delhi while reserving public order, police and land outside its ordinary field. C. gives the Lieutenant Governor an unrestricted personal veto over all administration. D. removes Parliament's legislative competence concerning the National Capital Territory.

Answer: B.

- **A:** Incorrect. Delhi remains a Union Territory with a special constitutional arrangement rather than full State status.
- **B:** Correct. The design combines representative government with constitutionally excluded subjects and continuing parliamentary authority.
- **C:** Incorrect. The Supreme Court has rejected routine displacement of the elected government's role by the Lieutenant Governor.
- **D:** Incorrect. Article 239AA preserves substantial parliamentary competence for the National Capital Territory.

Examiner trap: Delhi is neither an ordinary Union Territory nor a full State; answer through its specific text.

Q27. Which statement about Articles 371 to 371J is correct?

A. They create a single identical package of powers for every State. B. They grant separate national citizenship to their beneficiary populations. C. They contain differentiated State-specific arrangements responding to distinct historical and regional needs. D. They operate only during a National Emergency.

Answer: C.

- **A:** Incorrect. The clauses differ substantially in subject, institution and territorial application.
- **B:** Incorrect. India retains single citizenship; special governance arrangements do not create separate nationality.
- **C:** Correct. The family exemplifies asymmetrical accommodation within a common constitutional order.
- **D:** Incorrect. These are continuing constitutional provisions rather than emergency powers.

Examiner trap: Never compress the Article 371 family into one uniform privilege.

Q28. Which statement most accurately reflects the 11 December 2023 Article 370 judgment?

A. It restored the former Article 370 arrangement and the separate J&K Constitution. B. It fixed a legally binding calendar date for restoration of J&K statehood. C. It held that Ladakh could not remain a Union Territory. D. It upheld the 2019 constitutional changes, accepted Ladakh's Union Territory status and recorded an assurance of J&K statehood restoration without deciding the reorganisation issue finally.

Answer: D.

- **A:** Incorrect. The Court upheld the application of the Constitution of India without the former special arrangement.
- **B:** Incorrect. It directed Assembly elections by a date but did not prescribe a date for restoration of statehood.
- **C:** Incorrect. The Court accepted the Union Territory status of Ladakh in the operative disposition.
- **D:** Correct. This formulation preserves the judgment's holding, the assurance and the issue the Court did not finally determine.

Examiner trap: Separate the Article 370 holding, Ladakh's status, the election direction and the un-fixed statehood question.

Q29. What principle is most closely associated with the 10 November 2023 Punjab Governor judgment?

A. A Governor cannot indefinitely obstruct the normal legislative process and must act within the constitutional scheme. B. A Governor may create an unlimited pocket veto over every State Bill. C. The Speaker's conduct is controlled personally by the Governor. D. Every Bill automatically becomes law if the Governor does not act within one month.

Answer: A.

- **A:** Correct. The Court stressed constitutional action and rejected use of an unelected office to thwart ordinary lawmaking.
- **B:** Incorrect. Indefinite inaction is inconsistent with the constitutional role and representative government.
- **C:** Incorrect. The judgment respected the Speaker's procedural domain in the circumstances before it.
- **D:** Incorrect. The Court did not invent an automatic one-month deemed-assent rule.

Examiner trap: Reject both extremes: indefinite obstruction and invented automatic assent.

Q30. Which pairing best distinguishes territorial and functional federalism?

A. Territorial federalism concerns only municipal boundaries; functional federalism concerns secession. B. Territorial federalism allocates authority by level and territory; functional federalism coordinates governments around cross-cutting tasks. C. Territorial federalism is constitutional; functional federalism abolishes the Constitution. D. Functional federalism makes every intergovernmental body a sovereign tier.

Answer: B.

- **A:** Incorrect. Territorial federalism includes the Union-State constitutional map, not merely local boundaries.

- **B:** Correct. The distinction separates jurisdictional allocation from collaborative performance of interdependent functions.
- **C:** Incorrect. Functional cooperation operates through constitutional and statutory authority rather than outside it.
- **D:** Incorrect. A council or implementation network does not become a constituent sovereign government.

Examiner trap: A function may cross jurisdictions without dissolving the underlying territorial allocation.

Q31. Which statement about local governments in Indian federalism is correct?

A. The Seventy-third and Seventy-fourth Amendments made local bodies sovereign constituent units equal to States. B. Parliament directly assigns every local function throughout India. C. Local bodies are constitutionally recognised, but Articles 243G and 243W depend on State legislation for devolution of powers. D. Municipalities may invalidate State laws within their territory.

Answer: C.

- **A:** Incorrect. Constitutional recognition created a third level of governance, not a third co-sovereign federal order.
- **B:** Incorrect. State legislatures occupy the central constitutional role in endowing panchayats and municipalities with powers.
- **C:** Correct. The amendments secure institutional status while leaving the actual devolution architecture substantially State-mediated.
- **D:** Incorrect. Local bodies exercise conferred powers and do not possess constitutional supremacy over State legislation.

Examiner trap: Use 'third tier of governance' without claiming a third constituent sovereignty.

Q32. Which conclusion is most defensible about Indian federalism?

A. India is purely unitary because Parliament can reorganise States. B. India is purely federal because State List competence exists. C. One scholarly label conclusively settles the constitutional classification. D. India is constitutionally federal, Union-weighted and asymmetrical; cooperative, competitive and bargaining labels describe changing modes of operation.

Answer: D.

- **A:** Incorrect. Article 3 is a centralising feature, but it coexists with protected legislative and executive State competence.
- **B:** Incorrect. State competence establishes a federal core but does not erase residuary, emergency and coordinating Union powers.
- **C:** Incorrect. Scholarly descriptions illuminate dimensions and must be qualified against text, doctrine and practice.
- **D:** Correct. The formulation integrates legal structure, asymmetry and changing intergovernmental behaviour without an absolute label.

Examiner trap: A high-scoring verdict weighs structure, tilt and operation instead of choosing an unqualified binary label.

PYQS AND ANSWER PRACTICE

Audited PYQ set and ownership discipline

- The ten questions below preserve the wording held in the repository's official-paper routing ledgers.
- Direct Topic 12 routes are distinguished from shared or supporting routes whose full machinery belongs to Topics 13, 14 or 30.
- The locally held final official keys do not cover the 2021 and 2023 objective questions; their answer letters are withheld.

PYQ 1 - UPSC GS-II 2020, Q3 - direct

Question: How far do you think cooperation, competition and confrontation have shaped the nature of federation in India?

10 marks | 150 words

Model solution

Indian federalism is constitutionally divided but politically dynamic; cooperation, competition and confrontation operate simultaneously rather than in separate eras.

Cooperation appears through GST deliberation, Finance Commission consultation, disaster coordination and shared programmes: the Union supplies scale while States contribute implementation and local knowledge. **Competition** appears in investment, welfare innovation and comparative performance, although unequal capacity can widen divergence. **Confrontation** arises over Governor conduct, CBI consent, taxes, borrowing and river disputes.

These tensions need not destroy the federation when Parliament, councils, courts and elections channel them. *S.R. Bommai* protects a basic federal floor, while *Mohit Minerals* preserves legislative autonomy within GST dialogue.

Thus cooperation is the institutional necessity, competition an incentive mechanism and confrontation a test of whether bargaining remains constitutional.

Why this earns marks

It answers 'how far', gives a mechanism and evidence for all three modes, and reaches a graded hierarchy.

How to improve this answer

Use one illustration per mode and reserve the conclusion for the relationship among them.

PYQ 2 - UPSC GS-II 2021, Q11 - shared route

Question: The jurisdiction of the Central Bureau of Investigation regarding lodging an FIR and conducting a probe within a particular State is being questioned by various States. However, the power of States to withhold consent to the CBI is not absolute. Explain with special reference to the federal character of India.

15 marks | 250 words

Model solution

Police and public order are State subjects, while the CBI exercises police powers under the Delhi Special Police Establishment Act, 1946. Section 6 therefore requires State consent for ordinary exercise of those powers within a State.

General consent facilitates routine investigation; withdrawal ordinarily requires case-specific consent for fresh action. This protects territorial police autonomy and prevents an unrestricted parallel central police jurisdiction.

The power is not absolute. The Supreme Court under Article 32 and High Courts under Article 226 may direct a CBI investigation without State consent to protect rights and the integrity of justice. Withdrawal also does not automatically invalidate every investigation lawfully begun earlier; effect depends on the consent terms and facts.

In *State of West Bengal v. Union of India* (10 July 2024), the Supreme Court rejected the Union's preliminary maintainability objection to West Bengal's Article 131 suit. The Court did not finally decide the merits of every post-withdrawal investigation.

Federal balance therefore requires State consent as the statutory rule, constitutional-court power as an exceptional safeguard and clearer legislative protocols for accountability. Consent protects autonomy; it is not immunity from judicially ordered investigation.

Why this earns marks

It separates the statutory rule, constitutional exception and limited 2024 holding.

How to improve this answer

Do not turn the maintainability ruling into a final merits decision on every CBI case.

PYQ 3 - UPSC GS-II 2022, Q13 - shared route

Question: While the national political parties in India favour centralisation, the regional parties are in favour of State autonomy. Comment.

15 marks | 250 words

Model solution

The proposition identifies a tendency but is too absolute. Federal preferences often follow institutional position and electoral incentives more than permanent ideology.

A national party controlling the Union may favour uniform policy, national schemes, central agencies and common standards. It can rely on residuary power, conditional finance, All-India Services and the constitutional routes into State subjects. Regional parties draw legitimacy from State-specific identities and commonly demand larger fiscal space, fewer scheme conditions, neutral Governors and regular intergovernmental consultation.

Yet the relationship reverses. National parties governing opposition States invoke autonomy; regional parties may centralise within their own States; national coalitions accommodate regional partners; and regional parties participating at the Union may support uniform policy. GST shows parties pooling tax authority despite State-centred incentives.

The Constitution contains both impulses: List II and federal ratification protect autonomy, whereas Articles 3, 248 and emergency provisions strengthen the Union. *S.R. Bommai* prevents the party controlling the Union from erasing the federal basic structure.

Therefore party type matters, but control of office, coalition arithmetic and issue-specific interests explain behaviour more reliably than the national-regional label alone.

Why this earns marks

It comments through a qualified causal thesis, evidence, reversals and constitutional limits.

How to improve this answer

Organise the answer as incentive, evidence and counter-evidence rather than listing parties.

PYQ 4 - UPSC Prelims 2021, Q86 - direct

Question: Which one of the following in Indian polity is an essential feature that indicates that it is federal in character?

A. The independence of judiciary is safeguarded B. The Union Legislature has elected representatives from constituent units C. The Union Cabinet can have elected representatives from regional parties D. Fundamental Rights are enforceable by Courts of Law

Objective | local official key unavailable

Model solution

Answer withheld pending official UPSC key.

Concept route: A federal allocation requires an impartial constitutional umpire capable of adjudicating competence. Elected representatives from territorial units, regional-party ministers and enforceable rights can exist without a constitutionally divided federation. The question therefore tests the distinction between a specifically federal safeguard and more general democratic or constitutional features.

Why this earns marks

It preserves key discipline while explaining the exact conceptual discriminator.

How to improve this answer

Do not print an inferred answer letter when the locally held official key is unavailable.

PYQ 5 - UPSC Prelims 2023, Q32 - direct

Question: Consider the following statements:

1. In India, prisons are managed by State Governments with their own rules and regulations for day-to-day administration.
2. The Prisons Act, 1894 kept the subject of prisons under the control of Provincial Governments.

Which one of the following is correct in respect of the above statements?

A. Both Statement-I and Statement-II are correct and Statement-II is the correct explanation for Statement-I B. Both Statement-I and Statement-II are correct, but Statement-II is not the correct explanation for Statement-I C. Statement-I is correct, but Statement-II is incorrect D. Statement-I is incorrect, but Statement-II is correct

Objective | local official key unavailable

Model solution

Answer withheld pending official UPSC key.

Statement audit: Prison administration is presently a State responsibility under Entry 4 of List II, and States regulate day-to-day administration. The colonial Prisons Act is historically relevant, but the current constitutional allocation rests on the Seventh Schedule. The explanation test therefore requires separating historical statutory administration from the present constitutional reason.

Why this earns marks

It independently tests both statements and the causal link without promoting an unofficial key.

How to improve this answer

In assertion-reason questions, factual truth and explanatory relationship are separate steps.

PYQ 6 - UPSC GS-II 2020, Q11 - supporting; detailed machinery belongs to Topic 13

Question: The Indian Constitution exhibits centralising tendencies to maintain unity and integrity of the nation. Elucidate in the perspective of the Epidemic Diseases Act, 1897, the Disaster Management Act, 2005 and the recently passed Farm Acts.

15 marks | 250 words

Model solution

India's holding-together federation gives the Union coordinating capacity for externalities that cross State boundaries, but central action must remain tied to legislative competence and consultation.

During COVID-19, national directions under the Disaster Management Act operated alongside State public-health administration and the Epidemic Diseases Act. The arrangement showed Union scale depending on State implementation. The 2020 Farm Acts relied significantly on Concurrent List Entry 33 concerning trade in foodstuffs but affected agriculture and markets associated with State List Entries 14 and 28. Their enactment without adequate political consensus produced a competence-and-legitimacy dispute; repeal in 2021 demonstrated political federal correction.

The wider centralising design includes Article 248 residue, Articles 249, 250, 252 and 253, directions and emergency powers. Counterweights include List II autonomy, Rajya Sabha, judicial review and State electoral legitimacy.

Central capacity can protect unity where action is necessary and connected to an enumerated field. It becomes legitimate federal coordination only when competence is clear, measures are proportionate and States participate before implementation.

Why this earns marks

It applies the constitutional balance to every named law and distinguishes coordination from unlimited centralisation.

How to improve this answer

Keep the policy merits subordinate to the question's legislative-competence and consultation demand.

PYQ 7 - UPSC GS-II 2023, Q13 - supporting; Article 356 detail belongs to Topic 14

Question: Account for the legal and political factors responsible for the reduced frequency of using Article 356 by the Union Governments since the mid-1990s.

15 marks | 250 words

Model solution

The reduced frequency of Article 356 reflects the conversion of President's Rule from a broad political weapon into a reviewable exceptional remedy.

Legally, *S.R. Bommai* (1994) made federalism a basic feature, subjected proclamation material to judicial review, preferred an Assembly floor test for disputed majority and permitted restoration after unconstitutional dismissal. Later floor-test decisions increased the legal and reputational cost of partisan action. Article 355's duty cannot itself prove the Article 356 threshold that government cannot be carried on according to the Constitution.

Politically, coalition governments and strong regional parties increased State bargaining power. A competitive party system made arbitrary dismissal electorally costly, while media, opposition and judicial scrutiny strengthened accountability. Sarkaria and Punchhi recommendations reinforced the norm of warning, alternatives and last resort.

Use has not disappeared because genuine constitutional breakdown can still occur. The decline is therefore best explained by judicial discipline interacting with plural party politics, not by repeal or desuetude of Article 356.

Why this earns marks

It answers causation through distinct legal and political mechanisms and retains the exceptional power.

How to improve this answer

Avoid unsupported proclamation counts; the legal-political interaction is sufficient.

PYQ 8 - UPSC GS-II 2023, Q15 - supporting; GST detail belongs to Topic 30

Question: Explain the significance of the 101st Constitutional Amendment Act. To what extent does it reflect the accommodative spirit of federalism?

15 marks | 250 words

Model solution

The One Hundred and First Amendment restructured fiscal federalism by creating a shared indirect-tax field instead of assigning the whole field exclusively to one level.

Article 246A gives Parliament and State legislatures simultaneous GST competence, with a distinct parliamentary role for inter-State supplies. Article 269A provides the inter-State levy and apportionment bridge. Article 279A creates the GST Council, where weighted voting requires participation by both Union and States. The reform reduced several internal tax barriers and supported a common market.

Its accommodative character lies in pooled pre-existing authority, institutional State participation and a constitutional expectation of negotiated harmonisation. Limits remain: States lost some unilateral rate flexibility, fiscal capacity is unequal, and compensation and base exclusions can generate conflict. In *Mohit Minerals* (2022), the Supreme Court held Council recommendations non-binding, preserving legislative authority within collaborative dialogue.

The Amendment therefore reflects accommodative federalism to a substantial but conditional extent. Its constitutional design requires bargaining; its success depends on transparent reasons, trust and fair adjustment rather than legal compulsion alone.

Why this earns marks

It explains the three-Article design and evaluates accommodation through both gains and limits.

How to improve this answer

Do not say the Council binds legislatures after *Mohit Minerals*.

PYQ 9 - UPSC GS-II 2024, Q13 - supporting; full relation machinery belongs to Topic 13

Question: What changes has the Union Government recently introduced in the domain of Centre-State relations? Suggest measures to be adopted to build the trust between the Centre and the States and for strengthening federalism.

15 marks | 250 words

Model solution

Recent Centre-State relations combine rule-based coordination with new sources of mistrust. GST created permanent shared-tax negotiation; Finance Commission transfers remain the principal constitutional devolution route; and NITI Aayog replaced the Planning Commission's plan-allocation role with a consultative platform. At the same time, cesses outside the divisible pool, conditional schemes, borrowing constraints, Governor disputes and central-agency jurisdiction have generated centralisation concerns.

Trust requires process and predictability. The Inter-State Council should meet regularly with published follow-up. States should be consulted early on laws and schemes affecting List II. Transfers, cesses and scheme shares should be transparent and stable. GST disputes need reasoned Council deliberation. Governors should act promptly and constitutionally, while Article 356 must remain under *Bommai* discipline. Major federal measures deserve Rajya Sabha and committee scrutiny.

India needs a capable Union for common markets, rights and externalities, but capacity earns legitimacy through consultation. Cooperative federalism means institutionalised disagreement and reasoned compromise, not compelled unanimity.

Why this earns marks

It pairs each recent pattern with a trust deficit and an institution-specific remedy.

How to improve this answer

Use only dateable or legally anchored changes and avoid partisan allegations.

PYQ 10 - UPSC GS-II 2025, Q14 - supporting; fiscal detail belongs to Topic 13

Question: Examine the evolving pattern of Centre-State financial relations in the context of planned development in India. How far have the recent reforms impacted the fiscal federalism in India?

15 marks | 250 words

Model solution

Centre-State finance has moved from a dual arrangement of constitutional Finance Commission transfers and Planning Commission plan assistance toward a more rule-based but still mixed architecture.

During planned development, discretionary plan grants and centrally sponsored schemes gave the Union substantial influence over State priorities. After the Planning Commission was replaced by NITI Aayog, Finance Commission devolution became more prominent. GST pooled major indirect-tax powers through Articles 246A, 269A and 279A. The official Sixteenth Finance Commission report for 2026-31, submitted on 17 November 2025, recommends retaining the States' 41 per cent vertical share of the divisible pool.

Reforms improved formula-based transfers and common-market coordination. *Mohit Minerals* confirms that Council recommendations do not erase legislative autonomy. Yet vertical imbalance persists: States deliver major public services while the Union controls buoyant bases. Cesses and surcharges, conditional schemes, unequal tax capacity and Article 293 borrowing conditions can narrow effective State choice.

The impact is significant but incomplete. India has moved from plan discretion toward constitutionalised interdependence, not fiscal independence. Predictable schemes, transparent cesses, stronger State revenue capacity and regular consultation remain necessary.

Why this earns marks

It gives chronology, constitutional mechanisms, a dated official recommendation and a qualified extent verdict.

How to improve this answer

Keep horizontal formula weights out unless the exact report and year are cited.

Six original Mains questions with full model answers

Original Q1 - 10 marks | 150 words

Question: Distinguish federalism from administrative decentralisation and explain why India remains federal despite a strong Union.

Model solution

Federalism constitutionally protects governments at two levels; administrative decentralisation grants powers that a superior government may ordinarily withdraw.

India meets the federal test through a supreme written Constitution, dual polity, Seventh Schedule distribution, selective State ratification, judicial review and Rajya Sabha. States legislate directly on police, public health and agriculture; this authority is not delegated by the Union.

The Union is stronger through Article 248 residue, Articles 249, 250, 252 and 253, Article 3, integrated services and emergency powers. These features qualify rather than erase federalism because they are constitutionally enumerated, conditioned and reviewable. *S.R. Bommai* protects federalism as Basic Structure.

India is therefore a holding-together, Union-weighted federation. The decisive test is protected State competence, not equal institutional weight.

Answer-prose count: 120 words.

Why this earns marks

The answer defines the axis, proves autonomy and Union tilt, and closes with a case-backed classification.

How to improve this answer

In ten marks, use one federal cluster and one centralising cluster rather than listing every feature.

Original Q2 - 10 marks | 150 words

Question: How do Articles 1 and 3 combine national unity with territorial adaptability?

Model solution

Article 1 establishes India as a Union of States: the constitutional order is not a treaty among sovereign units and contains no unilateral right of secession. Article 3 gives Parliament power to form new States and alter areas, boundaries or names.

The process nevertheless contains consultation. A Bill requires the President's recommendation, and the President refers it to the affected State legislature for views within the specified period. Those views are not binding. Article 4 permits supplemental changes and excludes such a law from Article 368 merely because schedules and representation are adjusted.

This flexibility enabled linguistic and later territorial reorganisation without repeatedly re-founding the Union. Its democratic weakness is that an affected State lacks consent power. Parliament should therefore use prior consultation, reasoned criteria and transition safeguards.

Articles 1 and 3 make the Union indestructible but its internal map adaptable.

Answer-prose count: 141 words.

Why this earns marks

It states both unity and procedure, then converts the absence of a veto into a balanced reform point.

How to improve this answer

Do not confuse the State's right to express views with a right to approve the Bill.

Original Q3 - 15 marks | 250 words

Question: Asymmetrical federalism is an instrument of integration, not a departure from equal citizenship. Examine.

Model solution

Asymmetrical federalism means that territorial units possess different constitutional arrangements within one sovereign order. It seeks substantive integration by responding to different histories, identities and governing conditions.

The Fifth Schedule protects Scheduled Areas through a Governor and Tribes Advisory Council framework. The Sixth Schedule creates autonomous district and regional councils in specified tribal areas of Assam, Meghalaya, Tripura and Mizoram. Articles 371 to 371J contain distinct State-specific provisions; they are not one uniform privilege. Article 239AA gives Delhi an elected legislature and ministry while excluding public order, police and land from its ordinary field.

These arrangements can reduce alienation, protect land and customary institutions, and permit metropolitan or border-specific governance. They therefore strengthen the Union by making membership compatible with meaningful difference.

Risks remain. Complexity can obscure accountability; exceptional powers may be under-implemented; and unequal treatment may become politically contested. The post-2019 J&K arrangement also shows that asymmetry can be reduced through constitutional action. The 2023 Article 370 judgment upheld the changes but did not fix a date for restoration of statehood.

Asymmetry does not create different grades of Indian citizenship. Its legitimacy depends on constitutional purpose, participation, rights and periodic review. Equality requires equal citizenship, not necessarily identical territorial institutions.

Answer-prose count: 202 words.

Why this earns marks

It defines asymmetry, compares mechanisms, gives benefits and risks, and separates citizenship from institutions.

How to improve this answer

Name the precise schedule or article for every example instead of using 'special status' loosely.

Original Q4 - 15 marks | 250 words

Question: Evaluate the role of the judiciary in maintaining the federal balance in India.

Model solution

The judiciary maintains federal balance by interpreting competence, adjudicating legal disputes and preventing exceptional powers from destroying the constitutional allocation.

Under Article 131, the Supreme Court hears specified Union-State and inter-State disputes involving legal rights. In legislative cases, pith and substance identifies a law's true nature, harmonious construction reduces avoidable collision and Article 254 resolves irreconcilable Concurrent-field conflict.

The case trajectory is equally important. *State of West Bengal* rejected sovereign-compact immunity but did not erase State competence. *Kesavananda Bharati* supplied the Basic Structure limitation. *S.R. Bommai* expressly protected federalism, reviewed Article 356 material and preferred Assembly floor testing. *Mohit Minerals* preserved legislative autonomy by treating GST Council recommendations as non-binding. The 2024 West Bengal ruling allowed an Article 131 CBI-consent suit to proceed past preliminary objections without deciding the merits.

Judicial review has limits. Courts cannot replace fiscal bargaining, continuous consultation or political accountability, and excessive judicial management may narrow democratic choice.

The judiciary is therefore a constitutional umpire and minimum-guarantee institution, not the daily manager of federal relations. Its strongest contribution is keeping bargaining within competence, reasons and review.

Answer-prose count: 181 words.

Why this earns marks

It integrates jurisdiction, doctrines and cases while acknowledging institutional limits.

How to improve this answer

Use holdings narrowly and avoid presenting maintainability or advisory observations as final merits rules.

Original Q5 - 20 marks | 250 words

Question: Fiscal federalism in India combines constitutional equalisation with persistent centralising pressure. Critically analyse.

Model solution

Fiscal federalism asks whether each level has the resources to discharge its constitutional responsibilities. India combines tax assignment, devolution, grants and shared GST institutions, but practical autonomy remains uneven.

Articles 268-270 allocate levy, collection and distribution. Articles 275 and 282 provide distinct grant routes. Article 280 creates a periodic Finance Commission to recommend vertical distribution, horizontal allocation and grants. Articles 246A, 269A and 279A constitutionalise shared GST governance. The Sixteenth Finance Commission report for 2026-31, submitted on 17 November 2025, recommends retaining a 41 per cent vertical share for States.

These mechanisms support equalisation, predictable transfers and a common market. *Mohit Minerals* protects legislative autonomy by treating GST Council recommendations as persuasive rather than binding.

Centralising pressure persists. The Union controls several buoyant bases; States bear major health, education and local-service responsibilities. Cesses and surcharges outside the divisible pool, conditional centrally sponsored schemes, unequal tax capacity and Article 293 borrowing conditions can constrain policy choice. GST reduced independent rate space, and compensation disputes exposed dependence.

Reform should improve cess transparency, stabilise scheme shares, strengthen State tax administration, publish reasons in GST deliberations and align borrowing conditions with objective fiscal risk.

India's fiscal system is constitutionally cooperative but materially asymmetric. Equalisation must preserve both national solidarity and sufficient State discretion.

Answer-prose count: 209 words.

Why this earns marks

It distinguishes constitutional design, benefits, centralising pressures and executable reforms before a balanced verdict.

How to improve this answer

Do not use an undated devolution percentage; attach the commission period and report date.

Original Q6 - 20 marks | 250 words

Question: What are the principal challenges to Indian federalism, and how can constitutional trust be rebuilt without weakening legitimate Union capacity?

Model solution

Indian federalism must reconcile a Union capable of national action with States that possess meaningful political, administrative and fiscal autonomy. The present difficulty is often the manner of exercising power rather than the absence of constitutional institutions.

Governor delays and disputed majority assessments can obstruct elected governments. Fiscal dependence grows through cesses, conditional schemes and borrowing limits. GST creates common-market gains but also bargaining over revenue and policy space. Union legislation touching State concerns, central-agency jurisdiction and inter-State water disputes deepen mistrust. Unequal regional representation and weak devolution to local bodies add vertical and territorial tensions.

Reform requires regular Inter-State Council meetings with published follow-up; early State consultation on List II effects; transparent tax, cess and scheme data; predictable transfer and borrowing rules; and reasoned GST Council deliberation. Governors should act promptly and non-partisanly. *S.R. Bommai* floor-test and review principles must

govern Article 356. Rajya Sabha and parliamentary committees should scrutinise measures with major federal effects. States, in turn, should devolve functions, funds and staff to local bodies and use inter-State forums constructively.

National defence, rights, macroeconomic stability and cross-border externalities require Union capacity. Constitutional trust is rebuilt when that capacity is exercised through competence, necessity, consultation, reasons and review.

India needs neither automatic centralisation nor reflexive decentralisation, but cooperative strength under a protected federal floor.

Answer-prose count: 218 words.

Why this earns marks

It links each challenge to a mechanism and pairs reform with a necessary national-capacity qualification.

How to improve this answer

Group challenges into political, fiscal, functional and representational clusters before suggesting remedies.

OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

Analytical labels: use, qualify, never substitute

Label	Proper use	Necessary qualification
Quasi-federal - K.C. Wheare	Highlights the strong-Union tilt	A scholarly characterisation; <i>Bommai</i> protects a federal basic structure
Cooperative federalism - Granville Austin	Explains shared nation-building and interdependence	Cooperation coexists with disagreement and unequal capacity
Bargaining federalism - Morris-Jones	Explains negotiation through parties, finance and implementation	Bargaining power is not equal
Strong centralising tendency - Ivor Jennings	Highlights Union predominance	Does not make India purely unitary
Sui generis - Alexandrowicz	Signals that India does not fit one classical template	Uniqueness must still be proved through institutions
Competitive federalism	Explains innovation and investment rivalry	Requires equalisation and minimum capacity
Coercive federalism	Critiques leverage that narrows practical State choice	Must be demonstrated issue by issue

Comparative refinement

Axis	India	United States	Canada / Australia
Formation	Holding-together constitutional Union	Coming-together federation	Canada strong-centre; Australia compact origins
Residue	Parliament	States generally	Canada assigns residue federally
Upper chamber	Unequal State representation	Equal State representation	Equal State representation in Australia; Canadian appointments differ
Judiciary	Integrated hierarchy	Federal and State court systems	Comparative models vary
Territory	Parliament may reorganise States under Article 3	States territorially secure against unilateral federal alteration	Different constitutional amendment safeguards

Executive and dialogic federalism

- **Executive federalism** describes coordination dominated by ministers and officials. It can be fast, but legislative transparency and public reasons may weaken.
- **Dialogic federalism** describes iterative interaction among legislatures, executives, councils and courts. *Mohit Minerals* is useful because recommendation, legislation and review remain distinct stages.
- **Political safeguards** include Rajya Sabha, regional parties, coalitions, elections and State implementation capacity. They complement legal safeguards but do not replace them.
- **Constitutional morality in federalism** requires institutions to exercise lawful discretion with reasons, restraint and respect for the electorate represented at the other level.

Commission-based reform bank

- **Sarkaria Commission:** strengthen consultation, use Article 356 sparingly, improve Governor neutrality and prefer cooperative mechanisms.
- **Punchhi Commission:** refine Centre-State consultation, Governor practice, localised emergency thinking and intergovernmental institutions.
- **Rajamannar Committee:** represents a stronger State-autonomy critique and is useful as counter-position evidence.
- [LIMIT] Commission recommendations are persuasive evidence, not self-executing constitutional law.

Advanced synthesis: The most defensible account treats federalism as a constitutional allocation continuously reproduced through finance, administration, party competition, adjudication and trust.

CONSOLIDATED REGISTER NOTES

Constitutional identity and origin

- Federalism = constitutionally protected Union and State competence + shared-rule processes.
- Article 1: **Union of States**; no treaty-based secession right.
- 1919: provincial dyarchy; 1935: proposed All-India Federation, provincial autonomy, three Lists and Federal Court; federation did not operate.
- 1946-49: Constituent Assembly chose a strong Union; Constitution commenced 26 January 1950.
- 1953-56 linguistic reorganisation demonstrated territorial adaptability.
- 1994 *S.R. Bommai*: federalism Basic Structure and Article 356 review.
- 2016 One Hundred and First Amendment: shared GST architecture.

Federal core and Union tilt

Federal core	Union-weighted adaptation
Dual polity	Article 3 territorial power
Written and supreme Constitution	Article 248 residue
Seventh Schedule division	Articles 249/250/252/253
Article 368 State ratification	One Constitution and citizenship
Independent judicial review	Integrated services and institutions
Rajya Sabha State representation	Unequal State seats and emergency powers

Legislative rapid recall

- Articles 245-246: reach and three-List distribution.
- Article 246A: special GST competence.
- Article 248 + Entry 97: Parliament holds residue.
- Article 249: Rajya Sabha, two-thirds present and voting, national interest.
- Article 250: National Emergency; six-month survival.
- Article 252: two or more States request; Parliament alone amends/repeals.
- Article 253: treaty implementation can reach List II.
- Article 254: Concurrent-field repugnancy; assented State law may operate locally; Parliament may later override.
- Doctrines: pith and substance; harmonious construction; colourable legislation; territorial nexus.

Executive and institutional recall

- Articles 256-257: compliance and non-impediment directions, not general takeover.
- Articles 258/258A: reciprocal consensual entrustment.
- Article 263: consultative Inter-State Council.
- Article 312: Rajya Sabha federal trigger for new All-India Services.
- Article 355 duty != automatic Article 356 remedy.
- Article 360 can centralise financial administration; never proclaimed.

Fiscal and GST recall

- Vertical imbalance = mismatch between revenue powers and expenditure duties across levels.
- Horizontal imbalance = unequal capacity and need among States.
- Articles 268-270/269A: assignment and apportionment.
- Articles 275 and 282: distinct grant routes.
- Articles 280-281: Finance Commission.
- Articles 246A/279A: GST shared rule.
- *Mohit Minerals* (2022): Council recommendations are not binding.
- Sixteenth Finance Commission report for 2026-31 submitted 17 November 2025; 41 per cent is a dated recommendation, not a timeless constitutional share.

Asymmetry and multi-level governance

- Fifth Schedule != Sixth Schedule.
- Articles 371-371J differ State by State.
- Article 239AA: special NCT Delhi design; public order, police and land excluded.
- Article 370 judgment, 11 December 2023: 2019 changes upheld; Ladakh UT accepted; no J&K statehood-restoration date fixed.
- Local bodies are constitutionally recognised, but Articles 243G/243W make actual devolution State-mediated.
- Do not call local bodies co-sovereign constituent units.

Case strip

Case	One-line use
<i>State of West Bengal</i> (1963)	No sovereign-State compact immunity from valid Union power
<i>Kesavananda Bharati</i> (1973)	Basic Structure limits amendment
<i>State of Rajasthan</i> (1977)	Cautious pre- <i>Bommai</i> review context
<i>S.R. Bommai</i> (1994)	Federalism Basic Structure; Article 356 review; floor-test logic

Case	One-line use
<i>Kuldip Nayar</i> (2006)	Classical domicile/equal-seat template not indispensable
NCT Delhi judgments (2018, 2023)	Representative government within Article 239AA's asymmetric design
<i>Mohit Minerals</i> (2022)	GST recommendations persuasive, not binding
Punjab Governor (2023)	Governor cannot indefinitely thwart normal lawmaking
Article 370 (2023)	Exact post-2019 constitutional holding and limits
West Bengal (2024)	Article 131 CBI-consent suit maintainable; merits not finally decided

Challenges and reform route

- Governor friction -> neutral practice, reasons and prompt constitutional action.
- Fiscal centralisation -> transparent cesses, predictable transfers and flexible schemes.
- GST disputes -> reasoned deliberation and credible dispute handling.
- Inter-State disputes -> timely adjudication plus negotiated implementation.
- Regional representation -> transparent and consultative reform.
- Article 356 -> warning, alternatives, floor tests and *Bommai* review.
- Local government -> functions, funds and staff through State law.
- Consultation -> regular Inter-State Council and stronger Rajya Sabha/committee scrutiny.

Prelims close-option checklist

- Union of States != compact of sovereign States.
- Rajya Sabha represents States != equal State representation.
- Article 246A != a Concurrent List entry.
- Article 254 != every Union-State conflict.
- Article 249 != Article 250 != Article 252 != Article 253.
- Article 263 recommendation != binding adjudication.
- Article 355 duty != automatic Article 356.
- GST Council recommendation != binding command.
- Asymmetry != unequal citizenship.
- Third tier of governance != third co-sovereign federation layer.

Mains answer spine

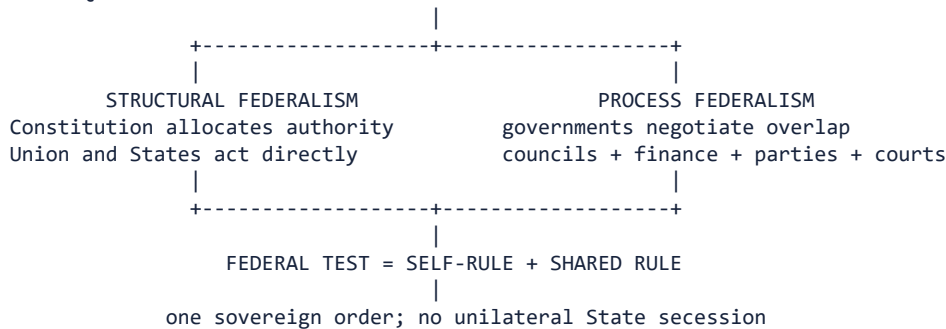
1. Define federalism through protected competence and intergovernmental process.
2. Trace the 1935 antecedent, Constituent Assembly choice, 1950 settlement and linguistic adaptation.
3. Establish the federal features.
4. Weigh the Union tilt through exact Articles.
5. Add legislative, executive, fiscal and adjudicatory mechanisms.
6. Use one current or recent judgment with its exact limit.
7. Evaluate cooperation, bargaining, asymmetry and centralisation.
8. End with institutional reforms and a qualified verdict.

Qualified conclusion: India is constitutionally federal, Union-weighted and asymmetrical. Its strength depends not on the absence of conflict but on converting conflict into consultation, reasons, adjudication and accountable compromise.

COMPLETE TOPIC ASCII MASTER FLOW DIAGRAM

ASCII MASTER FLOW - PANEL 1/12: Federal root and analytical axes

CENTRAL QUESTION: HOW CAN INDIA COMBINE NATIONAL CAPACITY WITH PROTECTED STATE AUTONOMY?



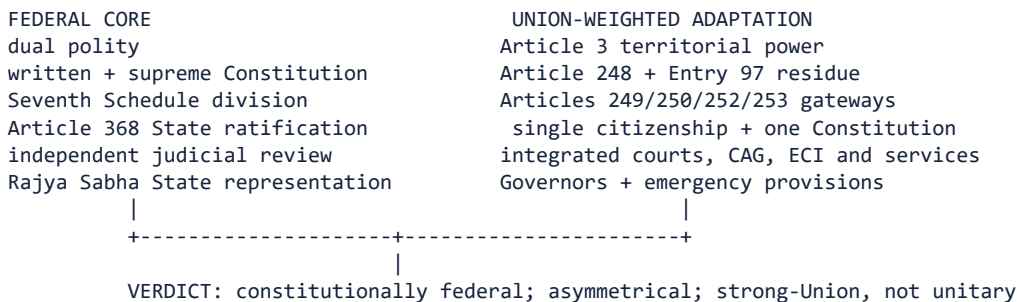
ASCII MASTER FLOW - PANEL 2/12: Origin, holding-together choice and adaptation

1919: provincial dyarchy; no federation

- > 1935: proposed All-India Federation + autonomy + three Lists + Federal Court
- > federation did not operate
- > 1946-49: Constituent Assembly chooses strong Union after Partition/integration
- > 26 JAN 1950: Union of States under one supreme Constitution
- > 1953-56: linguistic reorganisation + States Reorganisation Act + 7th Amendment
- > 1990: Inter-State Council | 1992-93: local bodies constitutionalised
- > 1994: S.R. BOMMAI protects federalism | 2016: 101st Amendment creates GST

CONTROL: colonial antecedent explains architecture; democratic Constitution supplies legitimacy.

ASCII MASTER FLOW - PANEL 3/12: Federal features versus centralising adaptation



TRAP: Rajya Sabha represents States but does not represent every State equally.

ASCII MASTER FLOW - PANEL 4/12: Legislative allocation and conflict sequence

ARTICLE 245: territorial reach

|
v

ARTICLE 246 + SEVENTH SCHEDULE

- ++- List I: Parliament
- ++- List II: States, subject to constitutional exceptions
- ++- List III: both levels

|

- ++- Article 246A: special GST competence
- ++- Article 248 + Entry 97: residue to Parliament

|
v

OVERLAP METHOD

pith and substance -> harmonious construction -> colourable legislation / nexus

|
v

ARTICLE 254: irreconcilable Concurrent conflict; assent exception; later Union override

ASCII MASTER FLOW - PANEL 5/12: Constitutional gateways into the State field

NORMAL RULE: LIST II BELONGS TO STATES

- |
- 249: Rajya Sabha; 2/3 present and voting; national interest
| resolution up to one year; renewable; law survives six months
- 250: Article 352 National Emergency; law survives six months
- 252: two or more State resolutions; other States may adopt
| only Parliament can amend or repeal the parliamentary law
- 253: treaty / convention / international decision implementation
- 356-357: State constitutional breakdown; parliamentary power; BOMMAI review

TRAP: these are distinct doors, not one undefined national-interest power.

ASCII MASTER FLOW - PANEL 6/12: Executive, administrative and intergovernmental process

IMPLEMENTATION RELATION

- Articles 256-257: compliance + non-impediment directions
- directions remain text-bounded; no general Union takeover
- Articles 258 / 258A: consensual entrustment in either direction
- Article 312: All-India Service after Rajya Sabha federal trigger

|
v

CONSULTATION RELATION

- Article 263: inquiry + discussion + recommendation
- Inter-State Council != court != legislature

|
v

HEALTHY EXECUTIVE FEDERALISM = legal basis + participation + reasons + accountability

ASCII MASTER FLOW - PANEL 7/12: Fiscal capacity and GST shared rule

RESPONSIBILITIES REQUIRE RESOURCES

- |
- VERTICAL IMBALANCE: revenue/expenditure mismatch between Union and States
- HORIZONTAL IMBALANCE: unequal capacity and need among States
|
- Articles 268-270 / 269A: levy, collection, assignment, apportionment
- Articles 275 and 282: distinct grant routes
- Articles 280-281: periodic Finance Commission recommendations
- Article 293: conditional Union consent to specified State borrowing
|
- 101st Amendment, 2016 -> 246A + 269A + 279A
MOHIT MINERALS, 2022 -> GST Council recommendations are not binding

CURRENT: 16th FC report for 2026-31 submitted 17 Nov 2025; 41% is a dated recommendation.

ASCII MASTER FLOW - PANEL 8/12: Judicial doctrine and the federal floor

STATE OF WEST BENGAL, 1963 -> States lack sovereign-compact immunity

|

KESAVANANDA BHARATI, 1973 -> amendment power cannot damage Basic Structure

|

STATE OF RAJASTHAN, 1977 -> cautious pre-Bommai review of Article 356 context

|

S.R. BOMMAI, 1994 -> federalism Basic Structure + Article 356 review + floor test

|

KULDIP NAYAR, 2006 -> domicile/equal-seat template not indispensable

|

MOHIT MINERALS, 2022 -> GST recommendations non-binding

|

2024 WEST BENGAL RULING -> Article 131 suit survived preliminary objection;
CBI-consent merits were not finally decided

COURTS PROTECT A MINIMUM; THEY DO NOT REPLACE DAILY INTERGOVERNMENTAL BARGAINING.

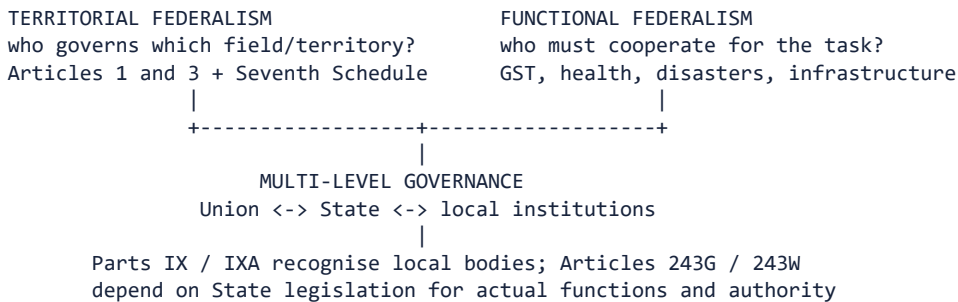
ASCII MASTER FLOW - PANEL 9/12: Asymmetry, Delhi and Jammu and Kashmir

ASYMMETRY = DIFFERENTIATED GOVERNANCE WITHIN ONE CITIZENSHIP

- Fifth Schedule: Scheduled Areas + Governor / Tribes Advisory Council
- Sixth Schedule: autonomous councils in specified areas of four States
- Articles 371-371J: distinct State-specific arrangements
- Article 239AA: Delhi legislature/ministry; public order, police, land excluded
- |
- NCT DELHI, 2018 / 2023: representative government within special UT design
- later 2023 legislation means the services judgment alone is not current law
- |
- ARTICLE 370 JUDGMENT, 11 DEC 2023
- upheld 2019 changes | accepted Ladakh UT | no statehood-restoration date fixed

TRAP: asymmetry is differentiated authority, not unequal Indian citizenship.

ASCII MASTER FLOW - PANEL 10/12: Territorial, functional and multi-level governance



CONTROL: local bodies are a third governance tier, not co-sovereign federal units.

ASCII MASTER FLOW - PANEL 11/12: Challenges, reforms and answer architecture

CHALLENGE	MECHANISM OF STRAIN	REFORM
Governor friction	delay / parallel discretion	prompt reasons + neutrality
fiscal centralisation	cesses / schemes / borrowing	transparency + predictability
GST disagreement	common market vs policy space	reasoned Council negotiation
inter-State disputes	durable externalities	adjudication + implementation
regional representation	competing fairness principles	broad consultation
Article 356 misuse	elected government displaced	BOMMAI + floor test + last resort
weak local devolution	distant service decisions	functions + funds + staff
irregular consultation	executive centralisation	regular Article 263 process

ANSWER METHOD: claim -> named Article/case -> mechanism -> counterpoint -> precise reform.

ASCII MASTER FLOW - PANEL 12/12: Integrated revision spine and qualified conclusion

DEFINE -> constitutional self-rule + shared rule
|
TRACE -> 1919 / 1935 / Constituent Assembly / 1950 / 1956 / 1994 / 2016
|
PROVE -> dual polity + supreme text + Lists + rigidity + courts + Rajya Sabha
|
QUALIFY -> Article 3 + residue + State-field doors + integrated machinery + emergency
|
OPERATE -> administration + finance + GST + councils + parties + adjudication
|
ACCOMMODATE -> Fifth/Sixth Schedules + 371 family + 239AA + bounded J&K status
|
EVALUATE -> Governor + fiscal space + disputes + representation + local devolution
|
CONCLUDE -> constitutionally federal, Union-weighted and asymmetrical;
cooperation gives capacity, restraint gives legitimacy.